JUL 0 9 2018

FL-300

PARTY WITHOUT ATTORNEY OR ATTORNEY:	STATE BAR NO.:	FOR COURT USE ONLY
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ATTORNEY FOR (name): Stephen Russell		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO		
STREET ADDRESS: 400 McAllister		
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CITY AND ZIP CODE: San Francisco, CA 94102		
BRANCH NAME:		
PETITIONER: Stephen Russell		
RESPONDENT: Tara Walsh		
OTHER PARENT/PARTY:		

REQUEST FOR ORDER ☐ **CHANGE** ☒ **TEMPORARY EMERGENCY ORDERS**

CASE NUMBER: FPT-18-377425

☒ Child Custody ☒ Visitation (Parenting Time) ☐ Spousal or Partner Support
☐ Child Support ☐ Domestic Violence Order ☐ Attorney's Fees and Costs
☐ Property Control ☒ Other *(specify)*: Return of child from NY; Order shortening time for hearing and FCS

NOTICE OF HEARING

1. TO *(name(s))*: Tara Walsh and her attorney of record Audrey T. Courson
☐ Petitioner ☒ Respondent ☐ Other Parent/Party ☐ Other *(specify)*:

2. **A COURT HEARING WILL BE HELD AS FOLLOWS:**

a. Date: 7/10/2018 Time: 1:30 p.m. ☒ Dept.: 404 ☐ Room:

b. Address of court ☒ same as noted above ☐ other *(specify)*:

3. **WARNING to the person served with the *Request for Order:*** The court may make the requested orders without you if you do not file a *Responsive Declaration to Request for Order* (form FL-320), serve a copy on the other parties at least nine court days before the hearing (unless the court has ordered a shorter period of time), and appear at the hearing. *(See form FL-320-INFO for more information.)*

(Forms FL-300-INFO and DV-400-INFO provide information about completing this form.)

COURT ORDER
(FOR COURT USE ONLY)

It is ordered that:

4. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before *(date)*:

5. ☐ A *Responsive Declaration to Request for Order* (form FL-320) must be served on or before *(date)*:

6. ☐ The parties must attend an appointment for child custody mediation or child custody recommending counseling as follows *(specify date, time, and location)*:

7. ☒ The orders in *Temporary Emergency (Ex Parte) Orders* (form FL-305) apply to this proceeding and must be personally served with all documents filed with this *Request for Order*.

8. ☐ Other *(specify)*:

Date:

JUDICIAL OFFICER

Form Adopted for Mandatory Use
Judicial Council of California
FL-300 [Rev. July 1, 2016]

CEB ceb.com Essential Forms

REQUEST FOR ORDER

Family Code, §§ 2045, 2107, 6224, 6226, 6320–6326, 6380–6383; Government Code, § 26826
Cal. Rules of Court, rule 5.92
www.courts.ca.gov

Rusell, Stephen

Public copy: the child's legal name is shown as E.V.; dates of birth, private street addresses, a mobile phone number and personal email addresses are removed. Otherwise unchanged.

PETITIONER: Stephen Russell RESPONDENT: Tara Walsh OTHER PARENT/PARTY:	CASE NUMBER: FPT-18-377425

REQUEST FOR ORDER

Note: Place a mark ☒ in front of the box that applies to your case or to your request. If you need more space, mark the box for "Attachment." For example, mark "Attachment 2a" to indicate that the list of children's names and birth dates continues on a paper attached to this form. Then, on a sheet of paper, list each attachment number followed by your request. At the top of the paper, write your name, case number, and "FL-300" as a title. (You may use *Attached Declaration* (form MC-031) for this purpose.)

1. ☒ RESTRAINING ORDER INFORMATION
   One or more domestic violence restraining/protective orders are now in effect between *(specify):*
   ☒ Petitioner ☒ Respondent ☐ Other Parent/Party *(Attach a copy of the orders if you have one.)*
   The orders are from the following court or courts *(specify county and state):*
   a. ☐ Criminal: County/state *(specify):* Case No. *(if known):*
   b. ☒ Family: County/state *(specify):* Westchester, NY Case No. *(if known):* 154703/O-06917-18
   c. ☐ Juvenile: County/state *(specify):* Case No. *(if known):*
   d. ☐ Other: County/state *(specify):* Case No. *(if known):*
   *I have not been served with this order.
2. ☒ CHILD CUSTODY ☒ I request temporary emergency orders
   ☒ VISITATION (PARENTING TIME)
   a. I request that the court make orders about the following children *(specify):*

Child's Name	Date of Birth	☒ Legal Custody to *(person who decides: health, education, etc):*	☒ Physical Custody to *(person with whom child lives):*
E.V.	[redacted]	temporary to Father	temporary to Father

   ☐ Attachment 2a.

   b. ☒ The orders I request for ☐ child custody ☒ visitation (parenting time) are:
      (1) ☐ Specified in the attached forms:
      ☐ Form FL-305 ☐ Form FL-311 ☐ Form FL-312 ☐ Form FL-341(C)
      ☐ Form FL-341(D) ☐ Form FL-341(E) ☐ Other *(specify):*
      (2) ☒ As follows *(specify):* ☐ Attachment 2b.
      Supervised visitation for Mother

   c. The orders that I request are in the best interest of the children because *(specify):* ☐ Attachment 2c.
      See attached declaration.

   d. ☐ This is a change from the current order for ☐ child custody ☐ visitation (parenting time).
      (1) ☐ The order for legal or physical custody was filed on *(date):* . The court ordered *(specify):*

      (2) ☐ The visitation (parenting time) order was filed on *(date):* . The court ordered *(specify):*

      ☐ Attachment 2d.

PETITIONER: Stephen Russell RESPONDENT: Tara Walsh OTHER PARENT/PARTY:	CASE NUMBER: FPT-18-377425

3. ☐ CHILD SUPPORT
(Note: An earnings assignment may be issued. See *Income Withholding for Support* (form FL-195))
a. I request that the court order child support as follows:
Child's name and age | ☐ I request support for each child based on the child support guideline. | ☐ Monthly amount ($) requested (if not by guideline)

E.V.

☐ Attachment 3a.

b. ☐ I want to change a current court order for child support filed on *(date):*
The court ordered child support as follows *(specify):*

c. I have completed and filed with this *Request for Order* a current *Income and Expense Declaration* (form FL-150) or I filed a current *Financial Statement (Simplified)* (form FL-155) because I meet the requirements to file form FL-155.

d. The court should make or change the support orders because *(specify):* ☐ Attachment 3d.

4. ☐ SPOUSAL OR DOMESTIC PARTNER SUPPORT
(Note: An *Earnings Assignment Order For Spousal or Partner Support* (form FL-435) may be issued.)
a. ☐ Amount requested *(monthly):* $
b. ☐ I want the court to ☐ change ☐ end the current support order filed on *(date):*
The court ordered $ per month for support.
c. ☐ This request is to modify (change) spousal or partner support after entry of a judgment.
I have completed and attached *Spousal or Partner Support Declaration Attachment* (form FL-157) or a declaration that addresses the same factors covered in form FL-157.
d. I have completed and filed a current *Income and Expense Declaration* (form FL-150) in support of my request.
e. The court should make, change, or end the support orders because *(specify):* ☐ Attachment 4e.

5. ☐ PROPERTY CONTROL
a. The ☐ petitioner ☐ respondent ☐ other parent/party control of the following property that we ☐ own or are buying ☐ lease or rent *(specify):* ☐ I request temporary emergency orders be given exclusive temporary use, possession, and

b. The ☐ petitioner ☐ respondent ☐ other parent/party be ordered to make the following payments on debts and liens coming due while the order is in effect:

Pay to: _____ For: _____ Amount: $ _____ Due date: _____
Pay to: _____ For: _____ Amount: $ _____ Due date: _____
Pay to: _____ For: _____ Amount: $ _____ Due date: _____
Pay to: _____ For: _____ Amount: $ _____ Due date: _____

c. ☐ This is a change from the current order for property control filed on *(date):*
d. Specify in Attachment 5d the reasons why the court should make or change the property control orders.

PETITIONER: Stephen Russell RESPONDENT: Tara Walsh OTHER PARENT/PARTY:	CASE NUMBER: FPT-18-377425

6. ☐ ATTORNEY'S FEES AND COSTS
I request attorney's fees and costs, which total *(specify amount):* $. I filed the following to support my request:
a. A current *Income and Expense Declaration* (form FL-150).
b. A *Request for Attorney's Fees and Costs Attachment* (form FL-319) or a declaration that addresses the factors covered in that form.
c. A *Supporting Declaration for Attorney's Fees and Costs Attachment* (form FL-158) or a declaration that addresses the factors covered in that form.

7. ☐ DOMESTIC VIOLENCE ORDER

- Do not use this form to ask for domestic violence restraining orders! Read form DV-505-INFO, *How Do I Ask for a Temporary Restraining Order,* for forms and information you need to ask for domestic violence restraining orders.
- Read form DV-400-INFO, *How to Change or End a Domestic Violence Restraining Order* for more information.

a. The *Restraining Order After Hearing* (form DV-130) was filed on *(date):*
b. I request that the court ☐ change ☐ end the personal conduct, stay-away, move-out orders, or other protective orders made in *Restraining Order After Hearing* (form DV-130). (*If you want to change the orders, complete 7c.)*
c. ☐ I request that the court make the following changes to the restraining orders *(specify):* ☐ Attachment 7c.

d. I want the court to change or end the orders because (*specify*): ☐ Attachment 7d.

8. ☒ OTHER ORDERS REQUESTED *(specify):* ☐ Attachment 8.
1. Minor child [redacted] to be returned from NY to San Francisco forthwith; 2. Order shortening time for parties to attend Family Court Services mediation and hearing; 3) Expedite motion to quash based on lack of subject matter jurisdiction.

9. ☐ TIME FOR SERVICE / TIME UNTIL HEARING I urgently need:
a. ☐ To serve the *Request for Order* no less than (*number):* court days before the hearing.
b. ☐ The hearing date and service of the *Request for Order* to be sooner.
c. I need the order because *(specify):* ☐ Attachment 9c.

10. ☒ FACTS TO SUPPORT the orders I request are listed below. The facts that I write in support and attach to this request cannot be longer than 10 pages, unless the court gives me permission. ☒ Attachment 10.
Please see attached declaration.

I declare under penalty of perjury under the laws of the State of California that the information provided in this form and all attachments is true and correct.

Date: July 6, 2018

Stephen Russell
(TYPE OR PRINT NAME)

(SIGNATURE OF APPLICANT)

Requests for Accommodations
Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the proceeding. Contact the clerk's office or go to *www.courts.ca.gov/forms* for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

ATTACHMENT 10TO REQUEST FOR ORDER

I, Stephen Russell, declare and state:

1. I am the Petitioner in this action. I have personal knowledge of the facts set forth below, and if called to testify, I could and would testify competently and truthfully regarding the following.

2. Respondent, Tara Walsh, and I are the parents of E.V. (hereinafter "Evie") born [redacted]. I have financially supported E.V. and Respondent since E.V.'s birth.

3. Respondent (hereinafter "Tara") and I have resided together in San Francisco with our daughter since March 18, 2018. Previously, Tara and I had lived together in San Francisco (where Evie may have been conceived), but after an incident whereby she threw a bottle of wine at my head, I asked Tara return to New York. After learning that Tara was pregnant, I paid for an apartment in Brooklyn, upgraded her medical insurance, and found a specialist who could help with her high-risk pregnancy. Though open to resuming a relationship with Tara, I concluded that our relationship could not heal in New York given the abusive family dynamic between Tara and her family but attempted to focus on being a helpful parent in spite of that though financial support, attending and helping with medical appointments, and being present at the birth and sleeping in a chair at the hospital through four days of recover after Tara's C-section. I needed to return to San Francisco for work and asked Tara to move there to give the relationship another try, or failing that, to better support Evie. She agreed after negotiating a few key terms focused on her desire to establish 6 months of cohabitation and not to have to work. We first moved to a house where my mother was living and began looking at apartments and houses to live more permanently. Tara brought her two dogs with her and nearly all of hers and the baby's things. Larger items were left stored in Brooklyn, with anything necessary like a crib or car seat being purchased

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new in San Francisco. The crib Tara selected was expandable and could grow with the baby over years. We hired a nanny on a 6-month initial contract. I paid for Tara and Evie to join Private Medical, a high-end concierge medical practice in San Francisco that requires pre-paid annual subscriptions. The cost was $45,000. Tara switched her primary care doctor and Evie's pediatrician to Private Medical. We ultimately moved into a penthouse apartment in the Millennium Tower under a year-long lease. Tara switched her mail and billing address to our new home there. The bulk of Tara's and Evie's things remain in San Francisco, as her declared reason for going to New York was simply to take a short vacation and consult with her family about her diagnosis of "Borderline Personality Disorder with Sociopathic Traits" and explore options after series of incidents that ranged from being caught drugging me to injuring our daughter during a delusional episode.

4. Shortly after we began residing together in San Francisco, Tara began to exhibit increased signs of mental instability like I had seen in the past. Tara has had multiple worrisome episodes where she had thrown a full bottle of wine at me, threatened suicide, made threats to harm me, attacked friends on social media she thought might be interested in dating me, abused her medication, faked a pregnancy and miscarriage, negligently allowed her sister's baby to consume a controlled medicine, and was generally abusive and emotionally unregulated with everyone in our life. While in San Francisco, because of our new baby the incidents seemed much more serious to me. Tara's sleep and medication issues resulted in her spending relatively few hours with our daughter. Much of her time awake was spent verbally abusing me. She threatened suicide on multiple occasions. She bought a plane ticket and attempted to run away from San Francisco leaving our daughter behind. Had multiple delusional episodes including one that led to Evie falling on her head from a height of about 3 feet and needing to go to the hospital. Our nanny also witnessed, and Tara

confessed to, putting drugs into my drinks on multiple occasions (see declaration of Abrehet Asmelash Tedla (hereinafter "Abby") filed herewith. I have filed a police report for this drugging (SFPD Case No. 180494149 taken by Officer Dove). I was issued an Emergency Protective Order. See Exhibit A.

5. After talking to Tara's mother and Tara's doctor an emergency intervention was advised and Dr. Abilash Gopal, M.D was recommended by Private Medical to help Tara. After several individual and joint sessions with Tara and myself, Dr. Gopal spoke to both of us together then individually and recommended a "higher standard of care" for Tara, and also told us that Tara exhibited signs of Borderline Personality Disorder ("BPD"), as well as, sociopathic traits. With Tara present, he recommended I take a strong stance on her getting care saying that setting clear "boundaries" is the best way to help someone with BPD. He also advised me that the path forward would not be guaranteed or easy. On his advice, I told Tara that I felt she needed to enter and graduate a Residential Care program, or alternative recommended by her doctors, in order for our relationship to work and for her to be a good mother to Evie. I later learned from Tara that she self-diagnosed herself with BPD and her New York therapist had concurred in Tara's self-assessment years earlier. Previously she had told me that she was bi-polar and ADHD which she had received treatment for since she was young. Tara's response to Dr. Gopal's diagnosis and recommendations was to fire the psychiatrist and ask him to keep her records confidential. She told me that she was worried she would not get better. Then she secretly attempted to leave San Francisco with our daughter, leaving behind her two dogs.

6. Upon learning that Tara was going to the airport with Evie, I filed Petition to Establish Parental Relationship (FL-200) on June 4, 2018 and asked Tara's parents for their help. After speaking with her parents, Tara returned to our home and Tara was personally

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served with the Parentage Petition on June 5, 2018. The Summons includes the restraining order that neither parent can remove the child from the state of California without court order or the other parent's written consent.

7. Because Tara's parents very badly wanted to spend time with Evie and because I thought that Tara's mental and emotional state would benefit from spending time with her parents, I agreed that she could visit her parents with the baby for two to three weeks. My agreement was conditional upon Tara's and her parents' explicit agreement to stay at her parents' home so that Evie and Tara would be safe, and further required that she seek advice from her New York therapist regarding her potential BPD diagnosis and her recent episodes. Furthermore, they agreed the "vacation" would last no more than 3 weeks and then she would return home. Attached as Exhibit B is an email thread between me and Tara's father, Steve Walsh, memorializing the conditions for Tara and Evie's travel. When she initially tried to leave on June 4, 2018, she provided Bryan Crutcher, my security detail, a copy of a round trip ticket to return to San Francisco in 11 days. She asked for Bryan's team to watch her two dogs while she was gone before deciding later to take them, and we were in the process of hiring a new nanny that Tara would be happy with. Attached hereto as Exhibit C is a string of emails between me and Tara's father in mid-May through early June whereby I update him on Tara's mental health. The very last text from Tara's dad states "I'm very happy to hear she'll be coming for a **visit**—we are all very excited about seeing Evie—all set up at our house to accommodate.

8. By June 22, 2018 it had become clear from my conversations with Tara that she had deceived us and was planning to remain in New York and would not be returning with our daughter in violation of our agreement and the automatic restraining order associated with the Parentage action.

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9. Shortly thereafter I was told by Tara and Tara's father that she intended to stay in New York and will not return to California and was acting without his involvement and support. Tara also told me that she had planted false evidence on hotlines in order to compromise my parental rights and things would be "very messy" for me.

10. Additionally, Tara emailed the concierge at our apartment on June 25, 2018 in response to an email notification regarding a FedEx package asking to be removed from such notifications as she would no longer be staying in the building. Please see Exhibit D. On June 23, 2018, Tara sent me a text stating "Well I won't give any statement until you allow me to return to our home....", implying that San Francisco was our home. See Exhibit E.

11. I also understand that Tara has filed for a Protective Order in Westchester County, NY where her parents reside. I did not have the opportunity to respond to the temporary restraining order as it was granted ex parte, nor have I been personally served with a copy of the restraining order but understand that there is a hearing set for July 17, 2018. It apparently covers both Tara and Evie as protected parties. I will be substantially prejudiced if that restraining order hearing goes through and includes Evie as a protected party without a determination of the which state has jurisdiction over Evie. Also know that in the days previous Tara sent numerous texts and calls that among other things included apologizing to me, asking to move back in with me, asking me to come visit her in NY, and generally complaining about how horrible her parents and life in New York was. In those same messages, I repeatedly asked her to not to contact me and to please work through her father or attorney as her texts and conversations where often also abusive and generally not helpful in any way. I did agree to come see Evie though very soon and let her father know I intended to come by the following week. Shortly thereafter communications with Tara and her father stopped and we have not spoken since.

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In these text messages with Tara from June 5 to approximately July 1, 2018 (attached hereto as Exhibit F), Tara makes such comments as:

"I accept that I made horrible decisions and made it impossible to be with" ; "I want to be able to see you and for all of us to be together"; "You should come this weekend for Father's Day"; "I still love you and it hurts to thing of breaking up, but that will never affect you seeing Evie."; "I also would love to have another child(s) and give Evie a sibling"; "I do feel remorse for what I've done"; "My whole family just wants me to be close, but living with my parents is honestly not good for my mental health. You know the background very well."; "I do want help but I seriously cannot handle losing my daughter"; "Every time I look at her I think of you and it hurts all the time that I ruined everything."; "I only acted that way because I loved you deeply and my mind is messed up". ; "It's not nice that you asked me to come and got my hopes up" (in response to my asking her to come to a June 30th wedding in California.; "Like 1 time" "No that's the truth Rashmi made me. Despite what you think I still want us to be together for Evie and I do still love you" In response to my asking her about calling abuse hotlines.; "You should come here to be with her on Father's Day! It's your first and it's sad your not together". ; "...someone told me my emotions don't matter now that I'm a mother—all that matters is Evie—that I could risk losing her if I can't control myself."; "When can you see us? ...Nothing is better then a long hug from you but I'll earn it or at least try. Next weekend? I feel bad she's not with you for Father's Day." ; "No I'm not now I'm super emotional from this med change still crying—I'll be fine tomorrow."; "I can't help but think my mom gave BPD to 4/6 of us" "I love you a lot and I am sorry for not showing it in the right ways—you are so brilliant, talented, patient, and Evie is lucky to have you as a Dad".; "It's honestly horrible living here—it's not healthy. I feel so sorry for my sisters" "And they get into physical fights and stuff with my parents".

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These texts show that TARA admits to having mental health issues, the environment that Evie is living in now is not safe, and that TARA is not afraid of me and does not express any concerns about me as a parent.

12. Tara has also filed a Request for Order in San Francisco Superior Court for August 14, 2018 to dismiss the action for lack of subject matter and/or quash the service of the Summons, stating that she was only visiting San Francisco. She also asks the Court in that hearing to be able to stay in New York with Evie until the jurisdiction is resolved. I request that Tara and Evie (or at least Evie) immediately return to San Francisco. Tara should have sought the Court's blessing before leaving, and her claims of domestic violence are not accurate. In fact, the opposite is true, and Tara is a risk to herself and our daughter. Tara admits in recent texts to me that she plans to begin Dialectical Behavior Therapy (DBT), which is a form of therapy to treat people with Borderline Personality Disorder and chronically suicidal individuals and is aimed at people who see little or no improvement in traditional therapy who engage in self-destructive behaviors. Even Tara's own parents have been adamant that she not leave their house for fear of consequences for Evie.

13. Tara implies that she was forced to come to San Francisco from New York City and that she was manipulated several times to remain here by me. She states that she never intended to leave her Brooklyn residence; however, in the restraining order she filed states that she is living in Westchester County at her parents' home. The protective order is also filed in Westchester County. This is because Tara's parents deeply understand their daughter's illness and strongly discouraged Tara from living on her own according to her father. Tara texted me on June 23, 2018 that she doesn't want to live in Brooklyn and asked me to pay for another apartment near her parents' home, as a result.

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14. Tara makes strong accusations about my mental health, domestic violence and financial threats about me. I am unclear what her purpose of including all of that information in a motion to quash based on lack of subject matter jurisdiction over than to paint me as a bad guy and win sympathy from the court for her actions in violating the Standard Restraining Order. I feel the need to respond to some of her statement in this declaration so that the Court is not biased against me given Tara's accusations. Specifically, I did not hire security to watch Tara to spy on her. I hired security because there was a serious security breach at my company which warrants temporary personal protection for me and my family, which includes Evie. I also had concerns about Tara's ability to parent which is why we had a nanny in place almost 24 hours a day or had a security person watching Evie. They protected and helped Evie and Tara in a myriad of ways never harassed Tara. As you can see from the declaration of Bryan Crutcher, the lead of the security team and other staff, Tara took full advantage of their services, which also include personal services and a concierge service. Tara had Bryan and his team pick up prescriptions, food orders, and laundry soap; she asked them to watch her dog while she went to New York; she was made vegetarian food and given personal training; and she also asked them to provide her transportation from the airport in New York to her parents' house when she landed on June 4, 2018. They also screened for a nanny for the parties for when Tara returned from New York. She also invited Bryan and his family over for a cake for Evie's 4th month birthday.

Many of the other accusations made by Tara are dispelled in the declarations filed herewith by Evie's former nanny and other staff. My chief of staff, Bryan Crutcher is a retired Vallejo Police Officer, he should be found credible and would not violate any laws or put anyone at risk.

15. I have never been physically abusive toward Tara and would never harm Evie. Given

that I have security 24/7 (and Tara had security on her as well), one of the security guards would have seen these incidents Tara describes as abusive. Instead their declarations describe Tara's anger, abuse and manipulation of me. As recently as June 23, 2018, she texted me "I seriously love and miss you". We also joked with each other in the same text thread. On June 25, 2018, without further incident, she filed the protective order.

16. Evie has lived in San Francisco longer than she lived in Brooklyn, and certainly longer than she has lived in Westchester County. Evie's father, extended family, nanny, and pediatrician are all in San Francisco. The psychiatrist seen by Tara (Dr. Gopal) who diagnosed as BPD is in San Francisco. Most of the persons who would be witness to the allegations made by the parties are in San Francisco. Most of the incidents described by Tara involving Evie occurred in San Francisco. This is relevant information for the Court for its discussion with the New York Court.

17. Tara admits to lying to me about my conditions for her to visit her parents in order to get away from me as she was "desperate to get away from me". Tara could have done a multitude of things within the law, including filing for a Temporary Restraining Order; asking the Court's permission to go with Evie in New York, or filed a custody action in New York. Instead she lied to me and has fled California with our daughter with no apparent intent to return. The status quo before she left should go back into effect. I filed a Parentage Action in San Francisco because I learned that she planned to leave with Evie without my permission and her caregivers and family were telling me she needed serious help for our daughter's and her own sake. I did not manipulate her into staying each time; instead family, friends and doctors were able to talk with Tara and then she thankfully would choose to stay and cancel her own flight. On the day she took Evie without permission to the

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airport, she later told me that never actually intended to leave but was simply acting out and wanted me to understand the consequences if I left her or did not agree to marry her.

18. I did not serve Tara the restraining order. The person who signed the Proof of Service can be called to testify if requested.

19. Given my experiences with Tara over the past few months I have no confidence that Tara can safely care for our daughter or that she will not attempt to flee with her again. She clearly does not care about court orders or written agreements. The evidence will show that Tara intended to move to San Francisco. However, until that is resolved, Tara should be abiding by the Standard Restraining Order and return our daughter to San Francisco. I am willing to facilitate frequent and continuing contact between Tara and Evie in San Francisco while Tara gets the medical care and support her doctors on both coasts and family says she requires.

ORDERS REQUESTED

20. I respectfully request the following orders:

a. E.V. to be returned from New York to San Francisco immediately;

b. Emergency Temporary physical custody of E.V. to Father until it is determined that E.V. is safe in Mother's care and will not flee with the child, with supervised visits for Mother;

c. Emergency Temporary legal custody to Father pending a determination of custody; or in the alternative;

d. The court expedite its telephone call with the Westchester County New York Court to determine which court has proper jurisdiction over Evie given the UCCJEA. The restraining order hearing is July 17, 2018 at 8:30 a.m. New York should not be making orders denying my access to Evie unless it's determined that they have jurisdiction over her.

e. An order shortening time for the parties to attend Family Court Services mediation and a hearing to determine custody and visitation, and possibly ordering a custody evaluation.

ORIGINAL SIGNATURE ON JUDICIAL COUNCIL FORM

LERNER • POOLE, LLP
ATTORNEYS AT LAW
535 PACIFIC AVENUE, 2ND FLOOR
SAN FRANCISCO, CALIFORNIA 94133-4635
(415) 391-6000
FACSIMILE: (415) 391-6011

EPO-001 ONE copy to court, ONE copy to restrained person, ONE copy to protected person, ONE copy to issuing agency

EMERGENCY PROTECTIVE ORDER *(See reverse for important notices.)*

LAW ENFORCEMENT CASE NUMBER: 180494149

1. **PROTECTED PERSONS** *(insert names of all persons protected by this Order):* Stephen Grant Russell

2. **RESTRAINED PERSON** *(name):* Tara Knoll Walsh

Sex: ☐ M ☒ F Ht.: 5'08 Wt.: 120 Hair color: Bln Eye color: Grn Race: W Age: 33 Date of birth: 09/10/1984

3. **TO THE RESTRAINED PERSON:**

a. ☒ **YOU MUST NOT** harass, attack, strike, threaten, assault (sexually or otherwise), hit, follow, stalk, molest, destroy any personal property of, disturb the peace of, keep under surveillance, or block the movements of each person named in item 1.

b. ☒ **YOU MUST NOT** contact, either directly or indirectly, by any means, including but not limited to by telephone, mail, e-mail or other electronic means, any person named in item 1.

c. ☒ **YOU MUST** ☒ stay away at least: 150 yards from each person named in item 1.

☒ stay away at least: 150 yards from ☐ move out immediately from

(address): [redacted] San Francisco CA 94105

d. **YOU MUST NOT** own, possess, purchase, receive, or attempt to purchase or receive any firearm or ammunition. If you have any firearms, you must turn them in to a law enforcement agency or sell them to, or store them with, a licensed gun dealer.

e. **YOU MUST NOT** take any action, directly or through others, to obtain the addresses or locations of any person named in item 1.

4. ☐ *(Name):* _____ is given temporary care and control of the following minor children of the parties *(names and ages):* _____

5. **THIS ORDER WILL EXPIRE AT THE CLOSE OF THE COURT BUSINESS DAY ON:** July 10th, 2018

INSERT DATE OF FIFTH COURT DAY OR SEVENTH CALENDAR DAY, WHICHEVER IS EARLIER; DO NOT COUNT DAY THE ORDER IS GRANTED

6. **TO THE PROTECTED PERSON:** If you need protection for a longer period of time, you must request restraining orders from the court in the county where you live:

(Name and address of court): 400 McAllister Street Room #103 San Francisco CA 94103

If you go to court to request restraining orders, take your copy of this form with you. If a juvenile petition is pending, file in that court.

7. Reasonable grounds for the issuance of this Order exist, and an emergency protective order is necessary to prevent the occurrence or recurrence of domestic violence, child abuse, child abduction, elder or dependent adult abuse, or stalking.

8. Judicial officer *(name):* Commissioner Tapply granted this Order on *(date):* 07/03/2018 at *(time):* 2025 Hrs

APPLICATION

9. The events that caused the protected person to fear immediate and present danger of domestic violence, child abuse, child abduction, elder or dependent adult abuse (except solely financial abuse), or stalking are *(give facts and dates; specify weapons):* Over the course of a year and a half, Russell was being poisoned by Walsh via Seroquel in his drinks. Walsh left the state and is currently residing in New York. Russell stated he has not had any recent contact from Walsh and is not sure of her exact location.

10. ☐ Firearms were: ☐ observed ☐ reported ☐ searched for ☐ seized

11. ☐ The person to be protected lives with the person to be restrained and requests an order that the restrained person move out immediately from the address in item 3c.

12. ☐ The person to be protected has minor children in common with the person to be restrained, and a temporary custody order is requested because of the facts alleged in item 9. A custody order ☐ does ☐ does not exist.

By: Ofc. Dove #4326

(PRINT NAME OF LAW ENFORCEMENT OFFICER) (SIGNATURE OF LAW ENFORCEMENT OFFICER)

Agency: San Francisco Police Department Telephone No.: 415-575-6000 Badge No.: 4326

PROOF OF SERVICE

13. Person served *(name):* _____

14. I personally delivered copies of this Order to the person served as follows: Date: _____ Time: _____
Address: _____

15. At the time of service, I was at least 18 years of age and not a party to this cause. ☐ I am a California law enforcement officer.

16. My name, address, and telephone number are *(this does not have to be server's home telephone number or address):* _____

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME OF SERVER) (SIGNATURE OF SERVER)

EXHIBIT A

Stacey Poole

From: Steve Russell [redacted]
Sent: Saturday, June 9, 2018 2:40 PM
To: [redacted]
Subject: Re: Restraining Order and Vacation to New York

Steve,

Thanks for agreeing to this. When you can, please see if you can get Tara to also send a short note acknowledging the conditions. She has verbally agreed, but it's important for her to have something in writing and abide by terms so she is not in violation of the restraining order.

Best,
Steve

------- Original Message -------
On June 8, 2018 12:19 PM, [redacted] wrote:

> Works for us - I appreciate your flexibility Steve
>
> Sent from my Sprint Samsung Galaxy Note8.
>
> -------- Original message --------
> From: Steve Russell [redacted]
> Date: 6/8/18 3:09 PM (GMT-05:00)
> To: [redacted]
> Subject: Restraining Order and Vacation to New York
>
> Tara and Steve Walsh:
>
> As you know there is a restraining order in place preventing both Tara and I from leaving the state with Evie without the other's permission. I am giving Tara permission to leave CA to visit you in NY under the following conditions. 1) She will likely be traveling on June 9th and arriving in the late evening; I'd like at least one of her parents to meet her at the airport for her to stay exclusively at her parents' home during the trip. 2) I'd like her to return to CA with the baby within 2-3 weeks and agree to take no steps legal or otherwise that would delay or avoid that. 3) I'd like her to get the advice of her family and her NY therapist and other care givers regarding her BPD diagnosis and recent behavior.
>
> I am also happy to have my attorney follow up with something more formal, but if these conditions are acceptable, Tara is free come visit Chappaqua. I hope you all have a wonderful time with Evie and will keep me regularly updated on how everything is going.
>
> Best,
> Steve Russell

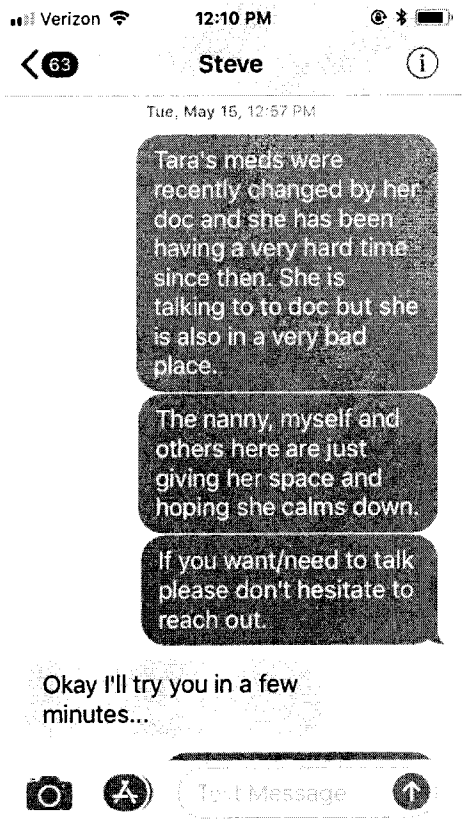
EXHIBIT B
Page 1 of 1

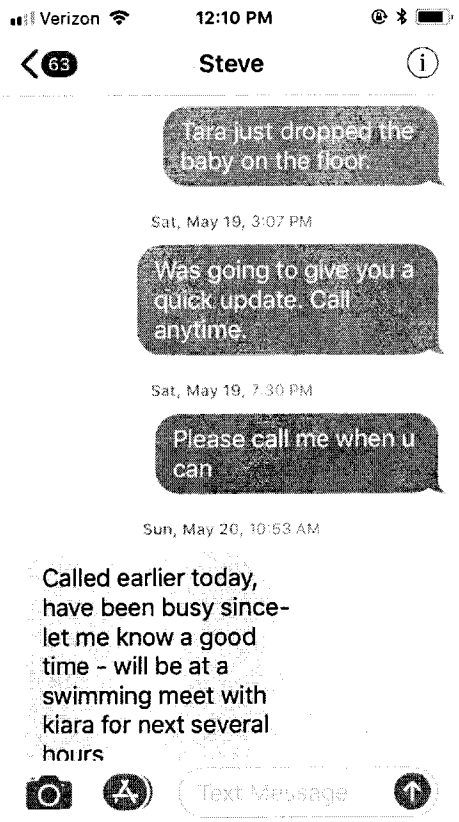
Steve Walsh Tara's Father and Russell Texts

All Texts are from mid to late May as Tara's actions were discussed, she met with her doctors, and we planned for her future and care.

EXHIBIT C

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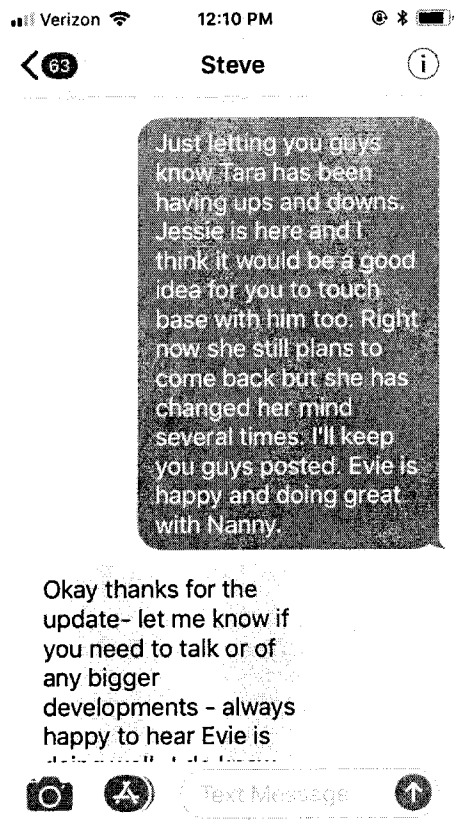
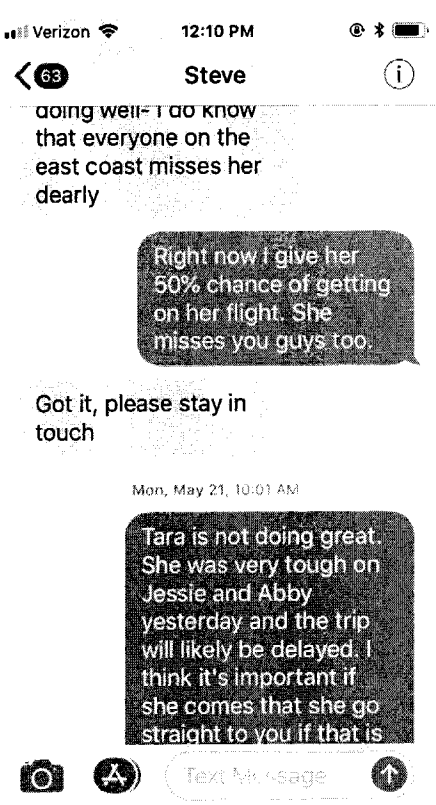
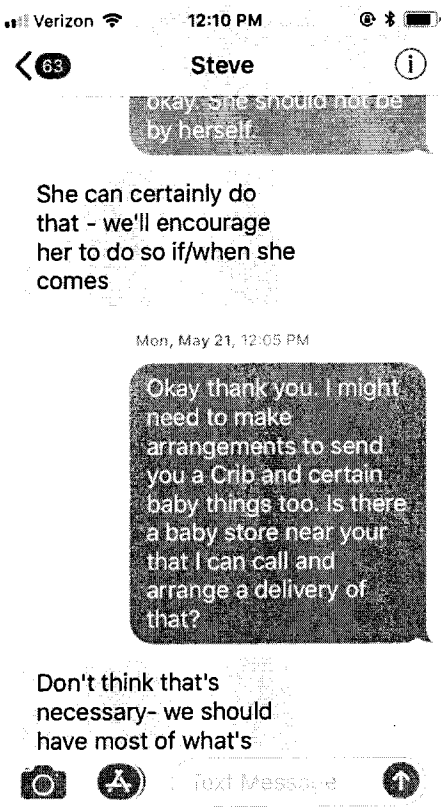


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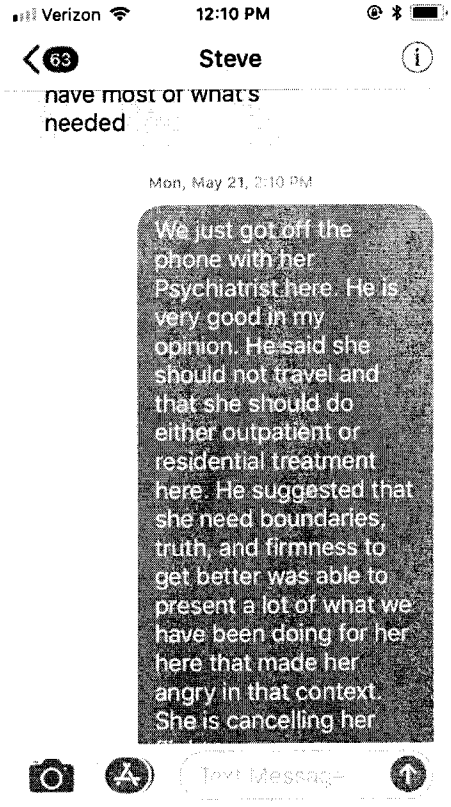
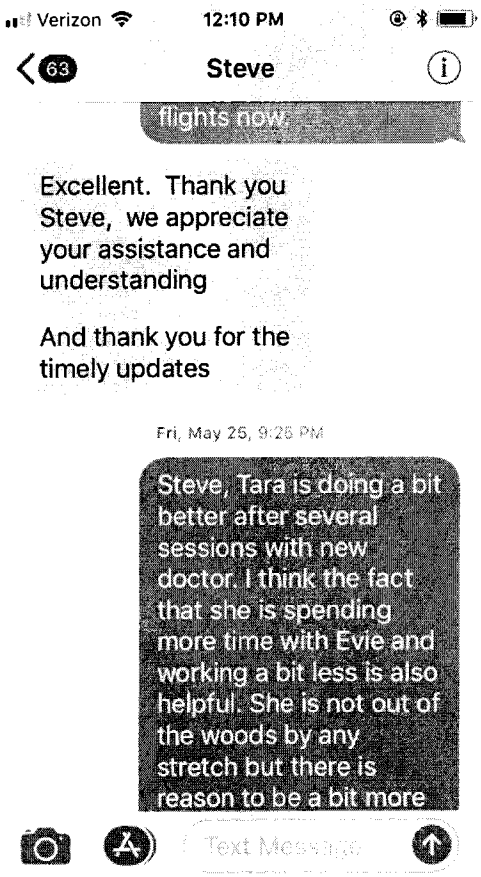
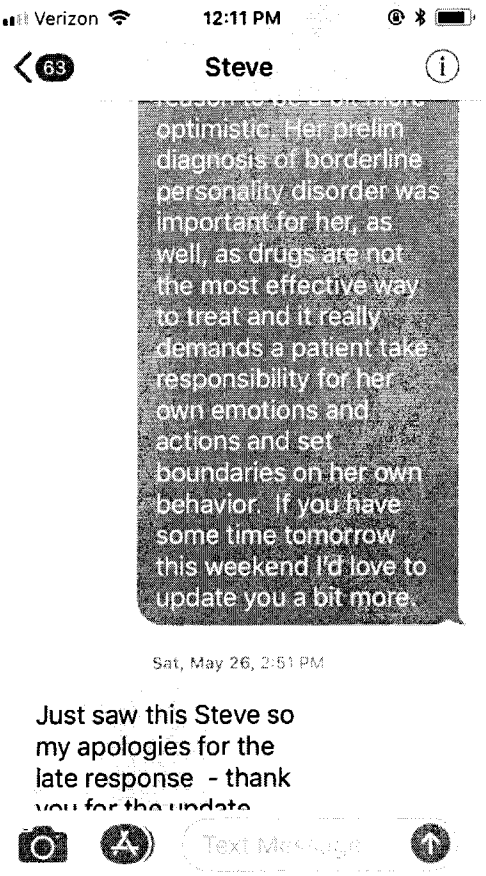


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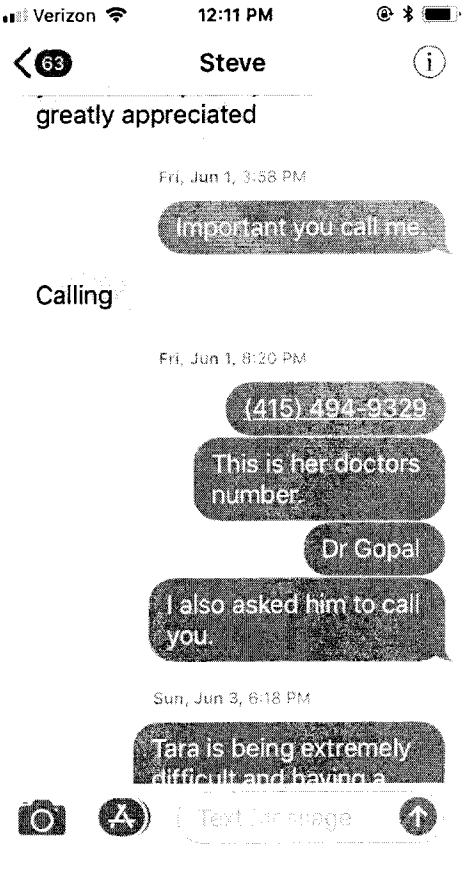
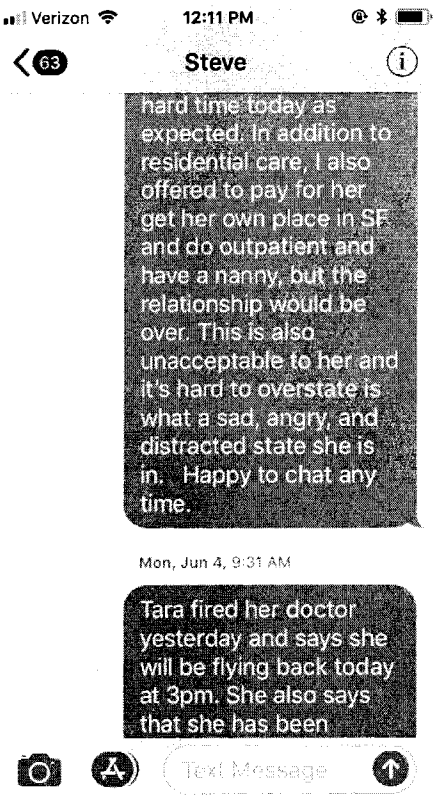
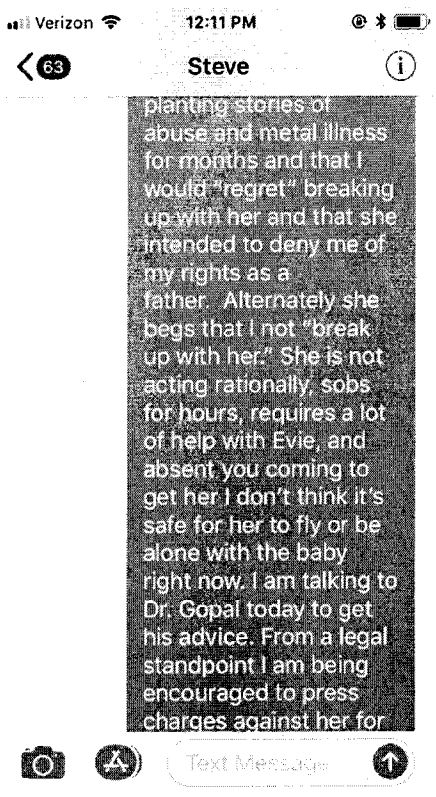


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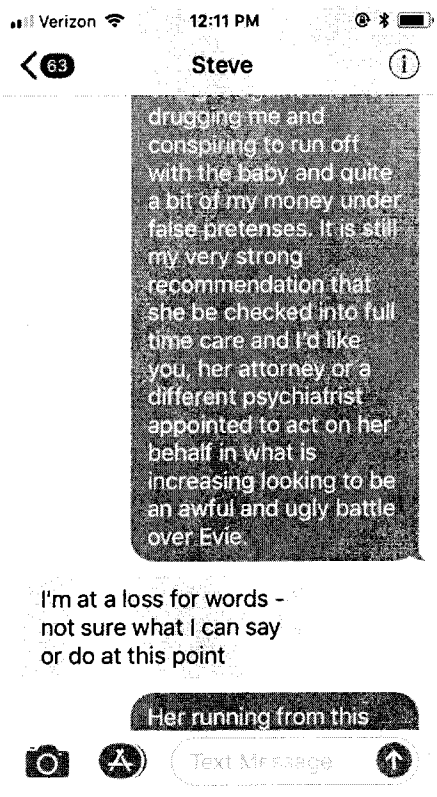
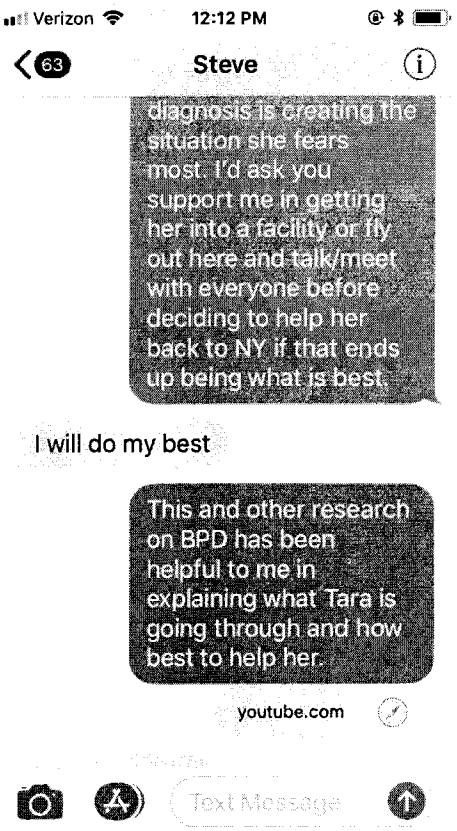
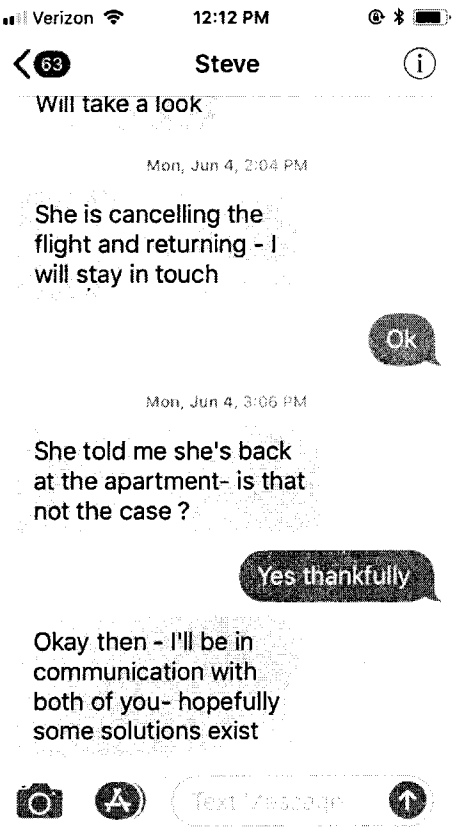


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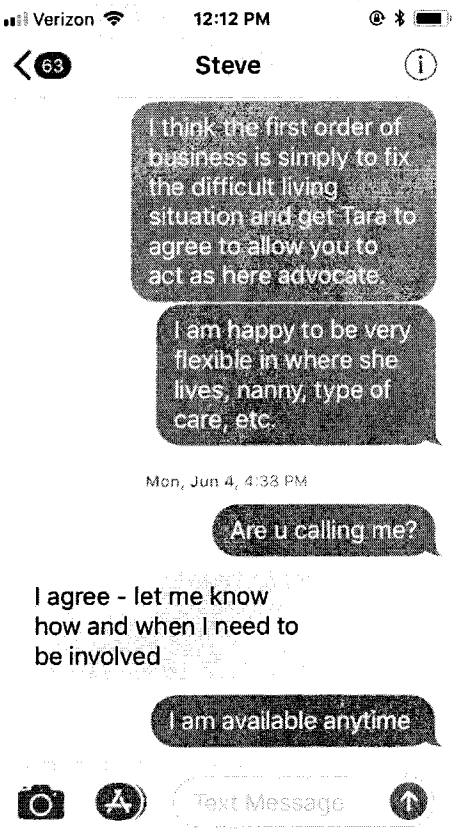
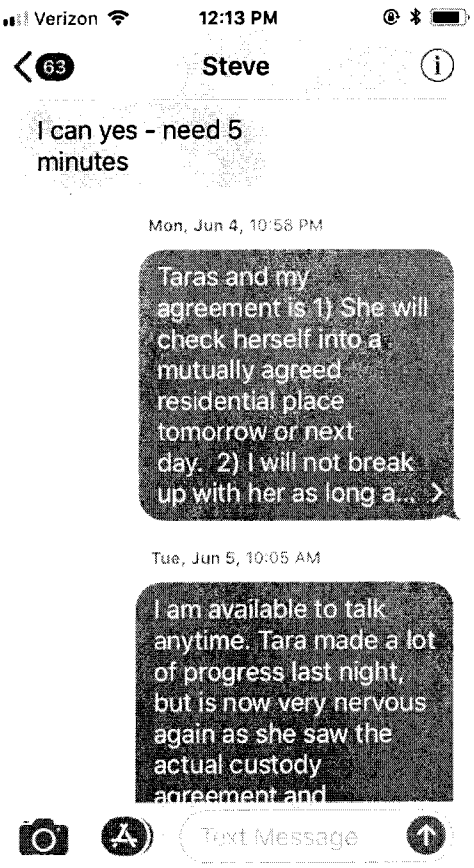
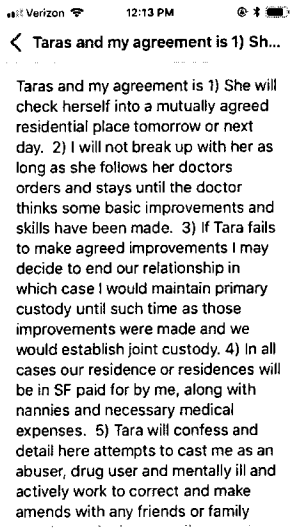
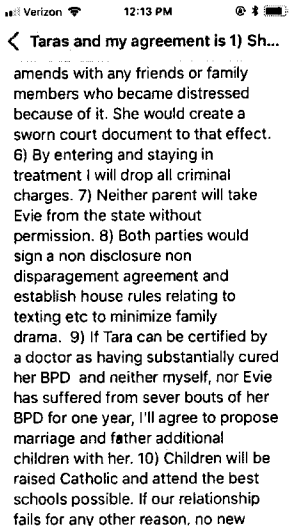


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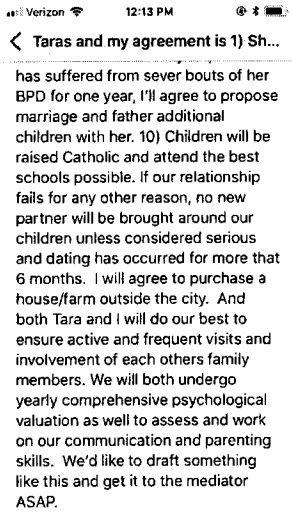
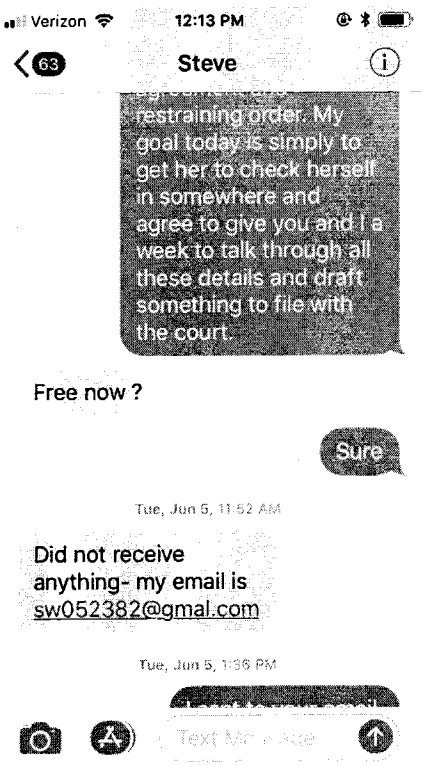
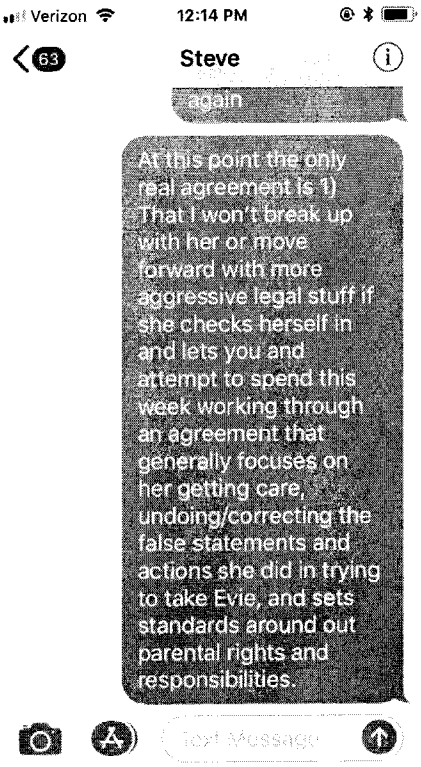


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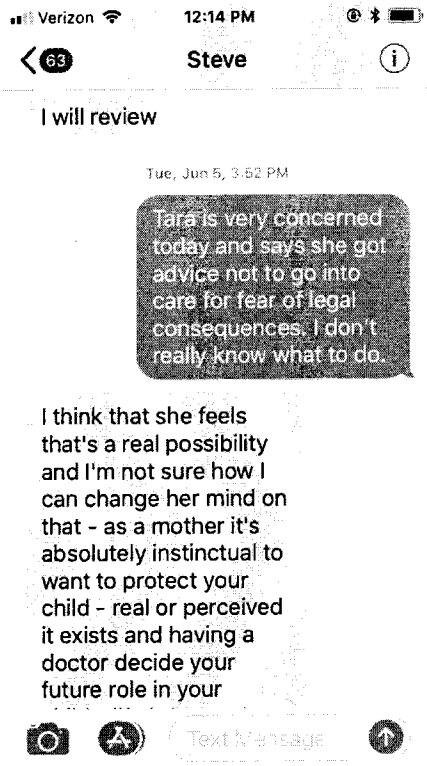
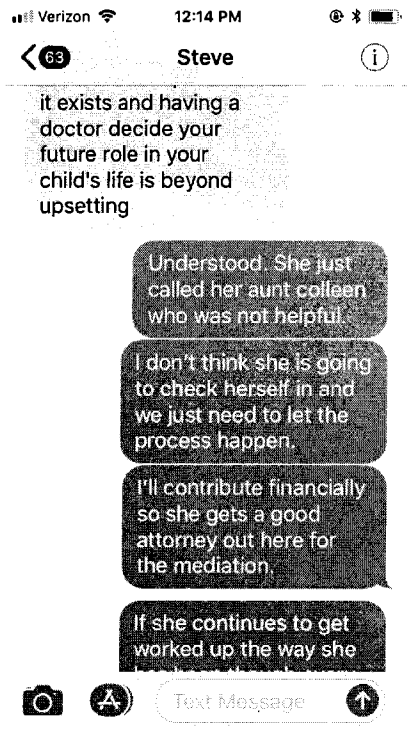
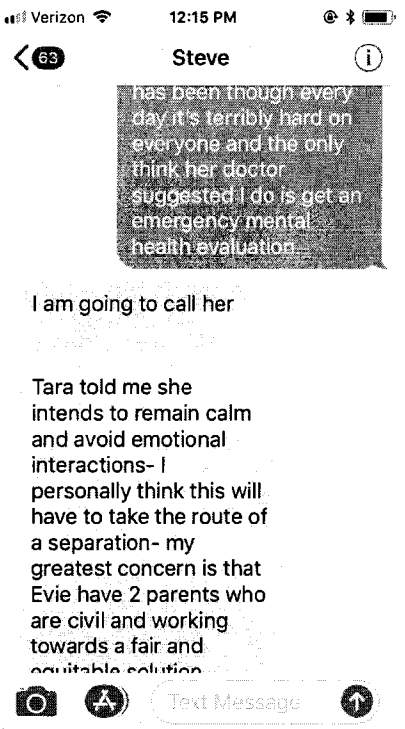


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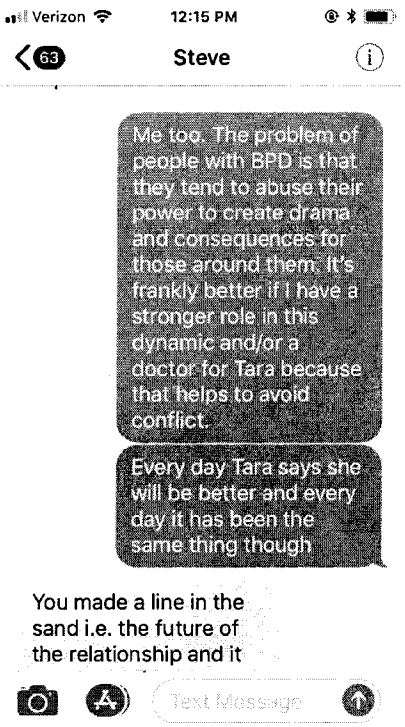


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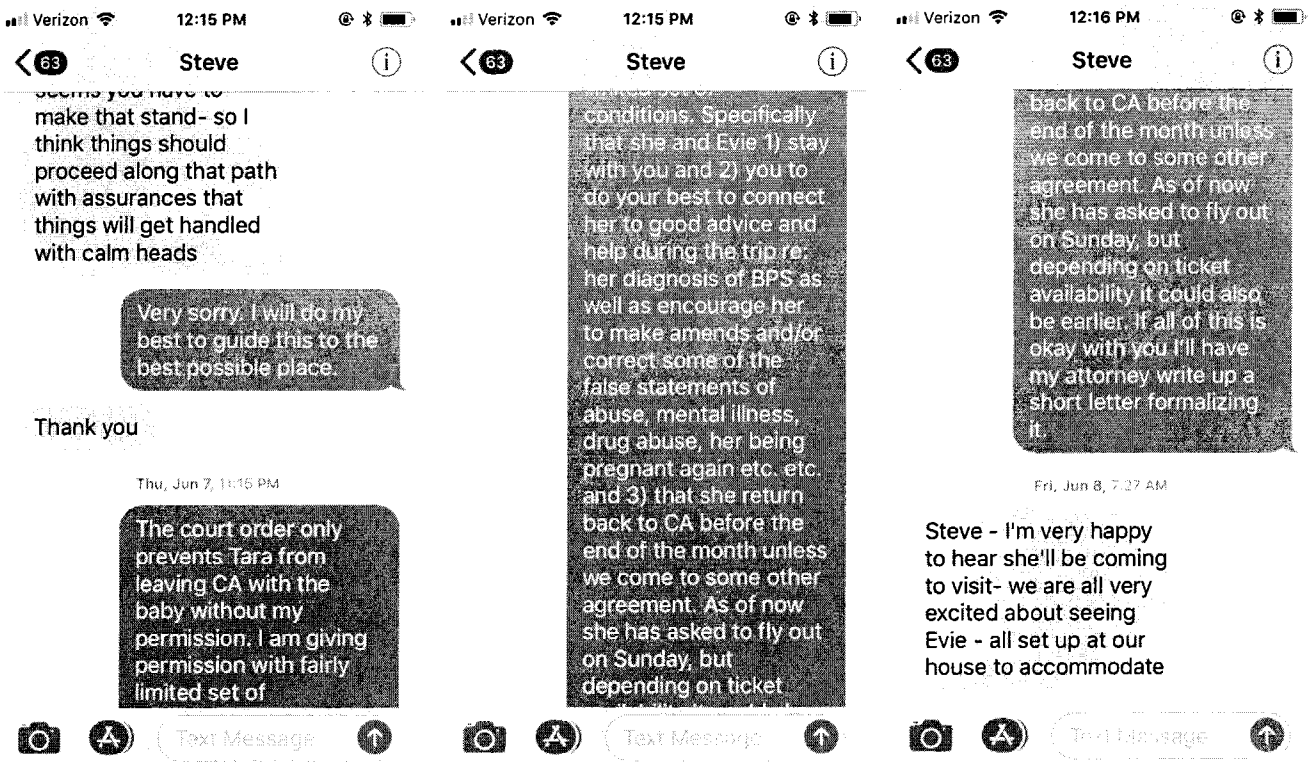


EXHIBIT C

Page 10 of 10

Stacey Poole

From:
Sent: Tuesday, June 26, 2018 12:25 PM
To: Stacey Poole; Stephen Russell
Subject: Fwd: You have a FedEx delivery at the Concierge Desk

see below

Begin forwarded message:

From: '
Subject: FW: FW: You have a FedEx delivery at the Concierge Desk
Date: June 26, 2018 at 12:23:27 PM PDT
To:

Here you go – see below.

Jason Allen, CCIM
Vice President
CA License No. 01438182
Direct +1 925 227 6266 | Mobile [redacted]
Main +1 925 463 2300 | Fax +1 925 463 0747
jason.allen@colliers.com | Add as Contact

Colliers International
3825 Hopyard Road, Suite 195 | Pleasanton, CA 94588 | United States
www.colliers.com

Colliers INTERNATIONAL

LINKS FOR LIFE FOUNDATION · CALIFORNIA A charitable giving foundation of Colliers International

From: Simone Gikanga [mailto:sgikanga@301mission.com]
Sent: Tuesday, June 26, 2018 12:20 PM
To: Allen, Jason (PLS) <Jason.Allen@colliers.com>
Subject: Fwd: FW: You have a FedEx delivery at the Concierge Desk

---------- Forwarded message ----------
From: **Grand Concierge** <Grand@301mission.com>
Date: Mon, Jun 25, 2018 at 1:38 PM
Subject: FW: You have a FedEx delivery at the Concierge Desk
To: Simone Gikanga <sgikanga@301mission.com>

Greetings Simone,
Please see below an email from Ms. Tara Walsh.
As stated she is no longer residing in [redacted].
Is there a need to amend the lease of [redacted] before removing her name in Building Link?

EXHIBIT D
Page 1 of 3

In addition to [redacted], Ms. Tara Walsh is also listed in [redacted].

Would you be kind to let me know how to move forward.
I would be most wiling to assist.
Sincerely,
Dulce

---------- Forwarded message ----------
From: **Vital Branding** [redacted]
Date: Mon, Jun 25, 2018 at 1:17 PM
Subject: Re: You have a FedEx delivery at the Concierge Desk
To: Concierge Desk <residences@301mission.com>

Please remove me from these emails I am no longer staying at [redacted] Thank you!

On Mon, Jun 25, 2018, 3:33 PM Concierge Desk <residences@301mission.com> wrote:

To: - Young / (s) Russell / Walsh, Millennium Tower

The following Event has been recorded by: Lionel Fiel, on 6/25/18 12:31 PM

Event Description: **Fedex**
Location:
- 10101895130600094105007725223599 67

Your FedEx package has arrived and is being checked in by Security. It should be available at your Front Desk within 2-3 hours. Thank you.

This is an automatic notification from BuildingLink. Do not reply to this E-mail. Don't want to receive these emails? Change your BuildingLink automatic notification preferences.

--
The Residences Concierge
Millennium Tower | [redacted] San Francisco, CA 94105
t 415. 874.4720 | f 415.874.4751

--

Best Regards,

EXHIBIT D
Page 2 of 3

Simone Gikanga | Administrative Assistant
Millennium Tower | [redacted] San Francisco, CA 94105
t 415. 874.4706 | **f** 415.874.4750

CONFIDENTIALITY NOTICE: This electronic message is intended to be viewed only by the individual to whom it is addressed. It may contain information that is confidential and exempt from disclosure under applicable law. Any dissemination, distribution or copying of this communication is strictly prohibited. If the reader of this message is not the intended recipient or you receive this communication in error, please notify us immediately by return e-mail and delete the original message and any copies of it from your computer system. **For further information about Action Property Management, please see our website at www.actionlife.com or refer to any of our offices. Thank you.**

EXHIBIT D
Page 3 of 3

Well I won't give any statement until you allow me to return to our home and be a normal human being

And start my dbt therapy- it will take me two hours from here to get there

Aren't you exhausted from this? Bc I am

We both have other stuff to do- I'd rather be doing things with Evie

Yes you are exhausting me, but I am still going to what is right.

EXHIBIT E
Page 1 of 1

Walsh V. Russell Texts

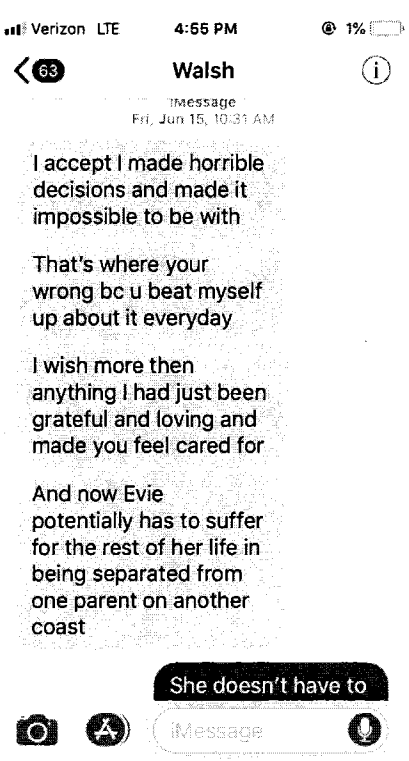
All Texts are from June 5 to about July 1st after Walsh left SF for a 'vacation' with her parents for 2-3 weeks.

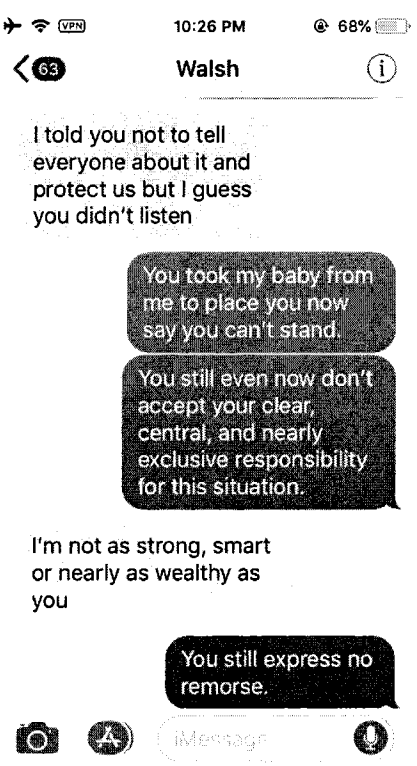
EXHIBIT F

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I accept that I made 'horrible decisions.' - June 15, 2018

EXHIBIT E
Page 2 of 33





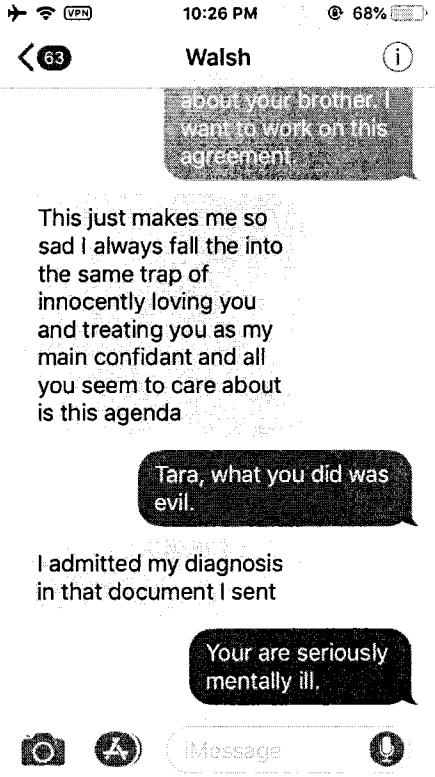
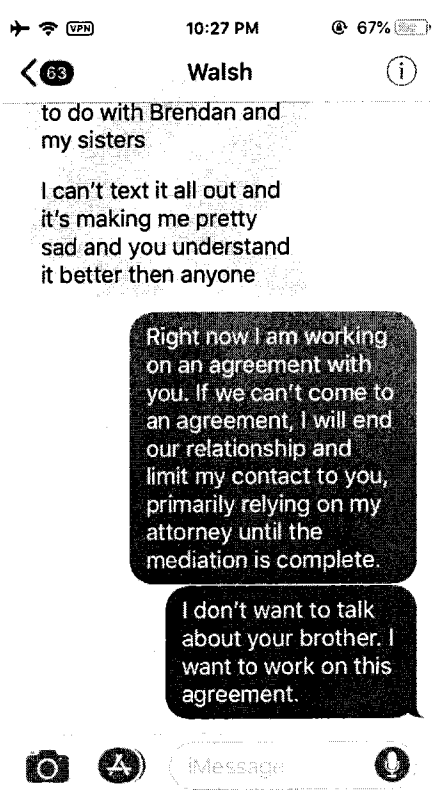
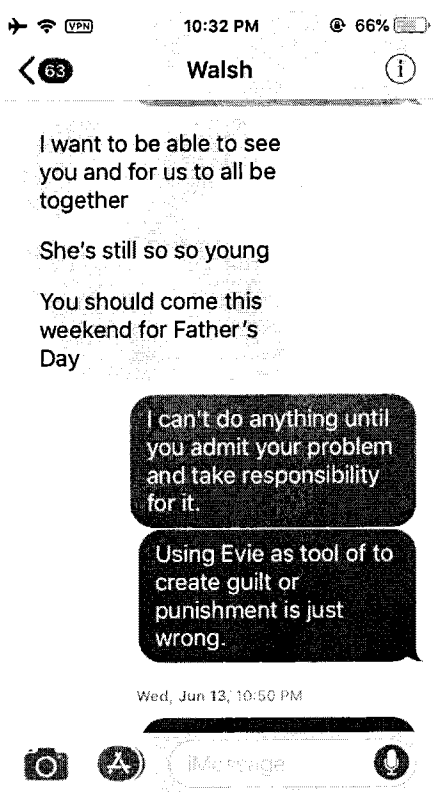


EXHIBIT E

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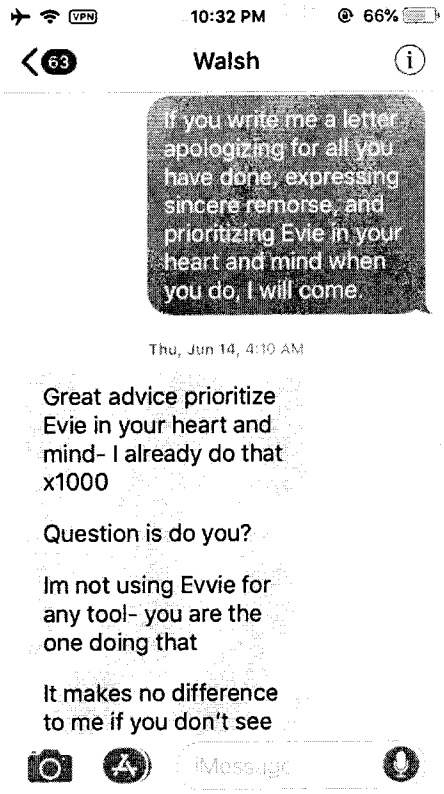
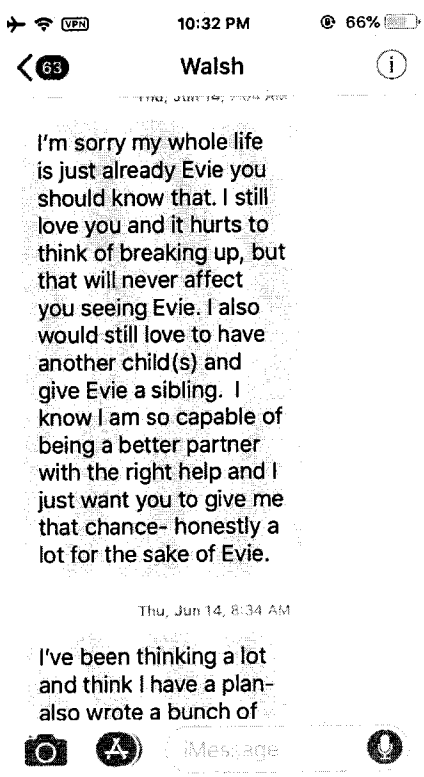
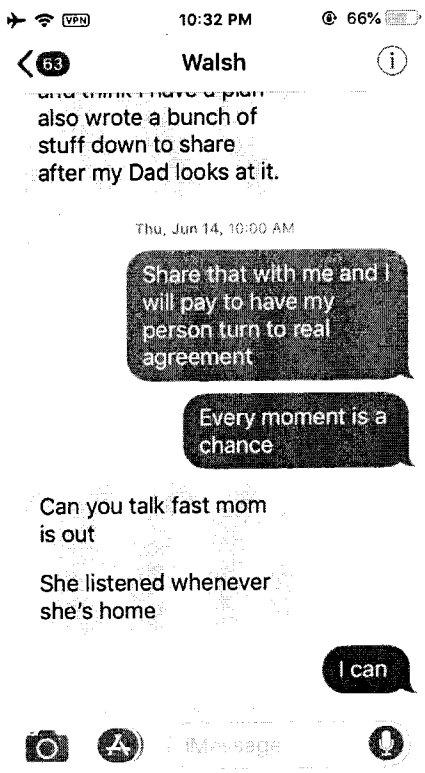


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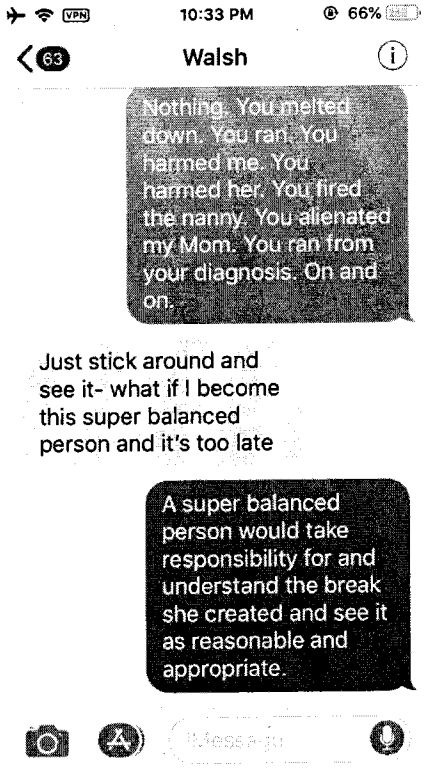
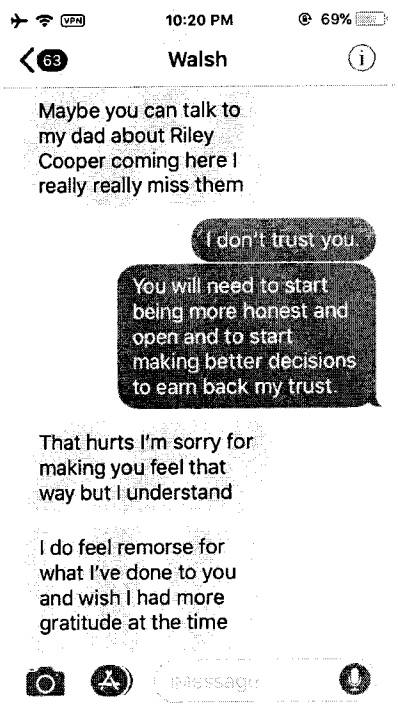


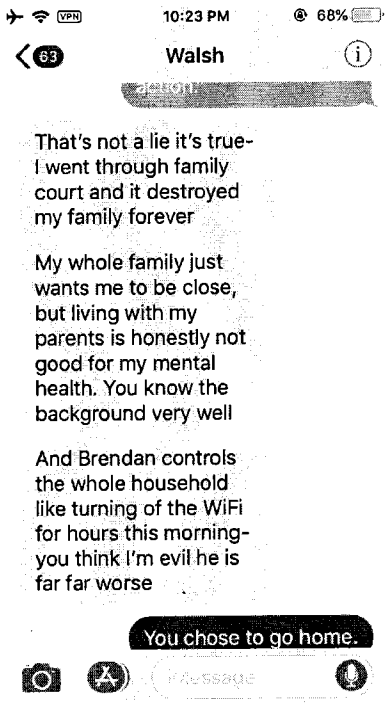
EXHIBIT F

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I do feel remorse. I acted that way bc my mind is messed up. - Walsh Early to Mid June, 2018

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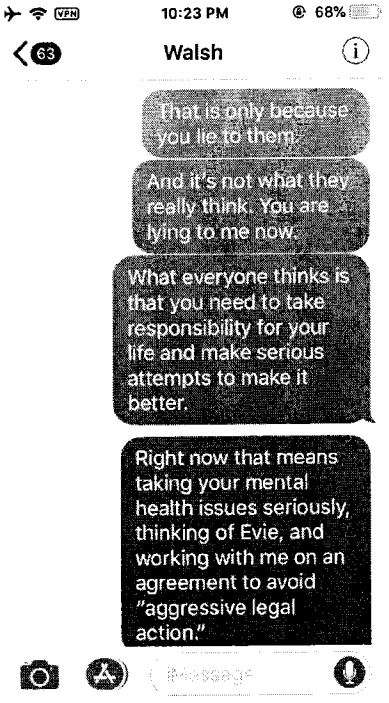
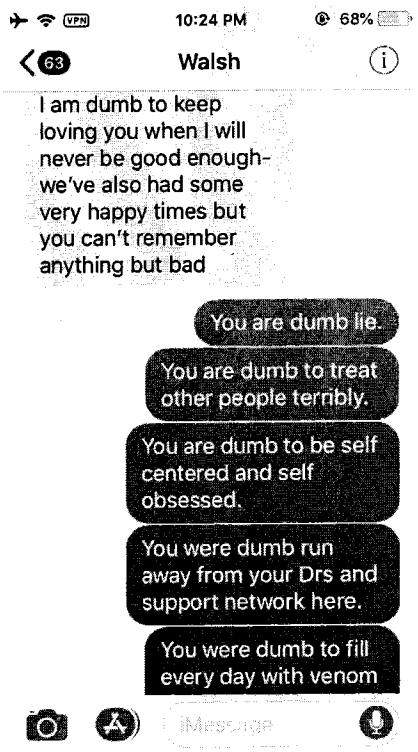
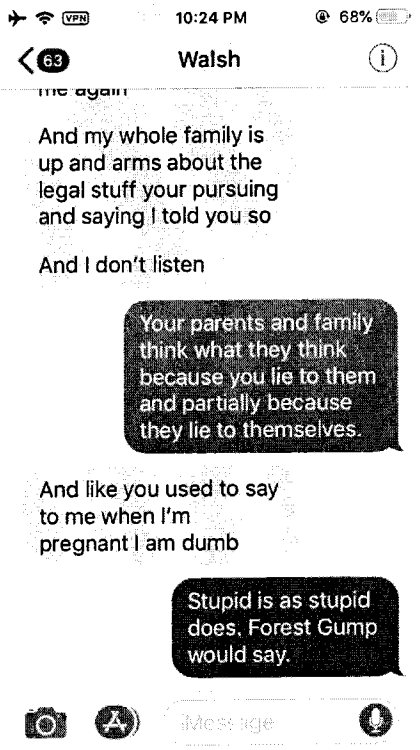


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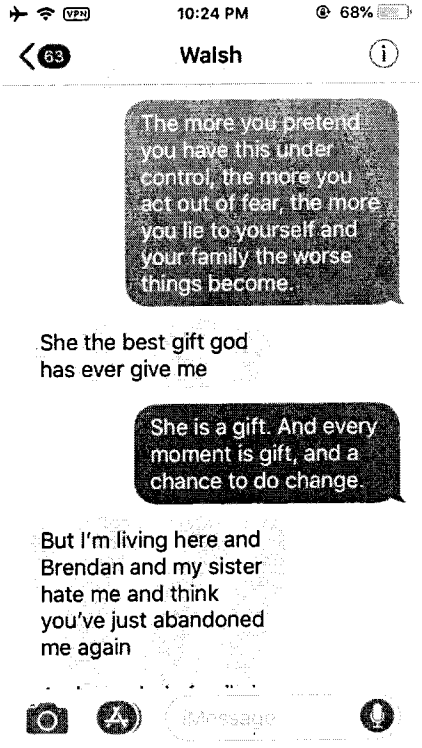
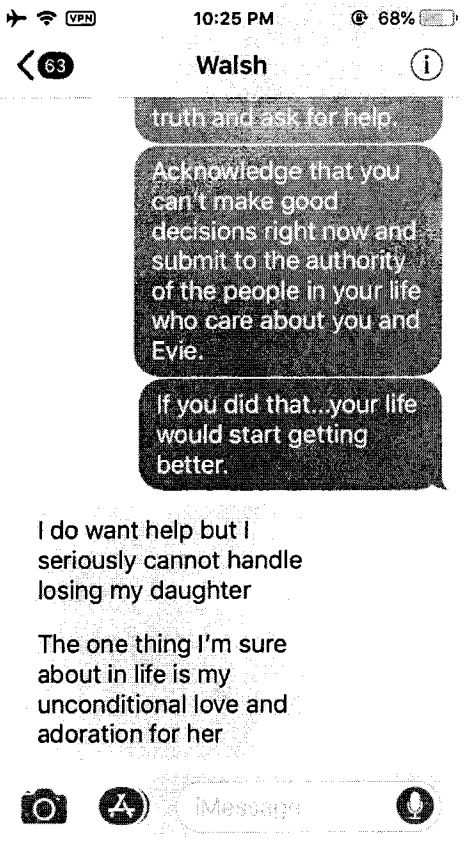


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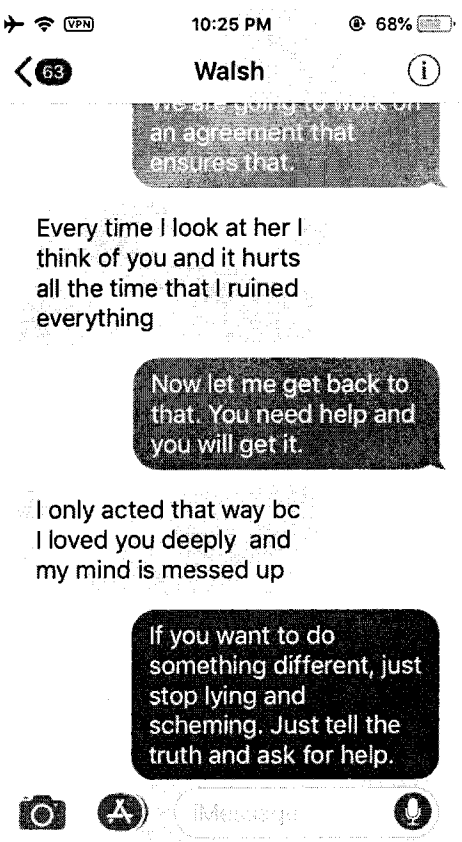
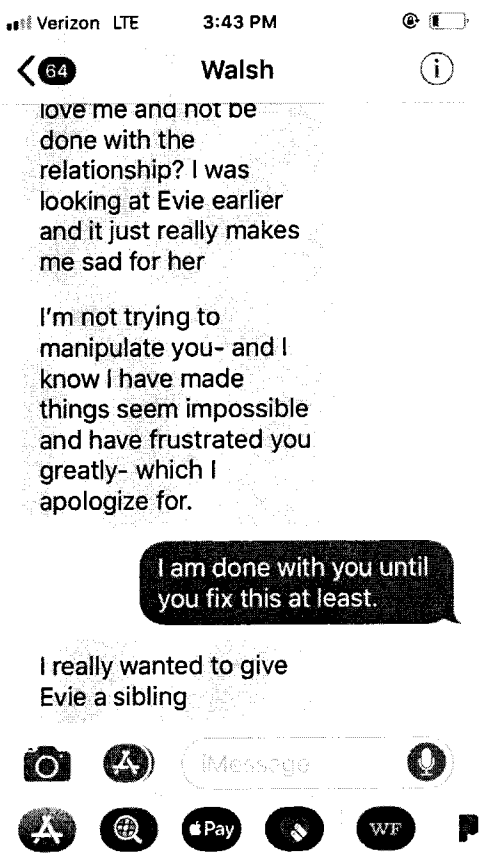


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I know I have made things seem impossible.
Apology - June 15, 2018

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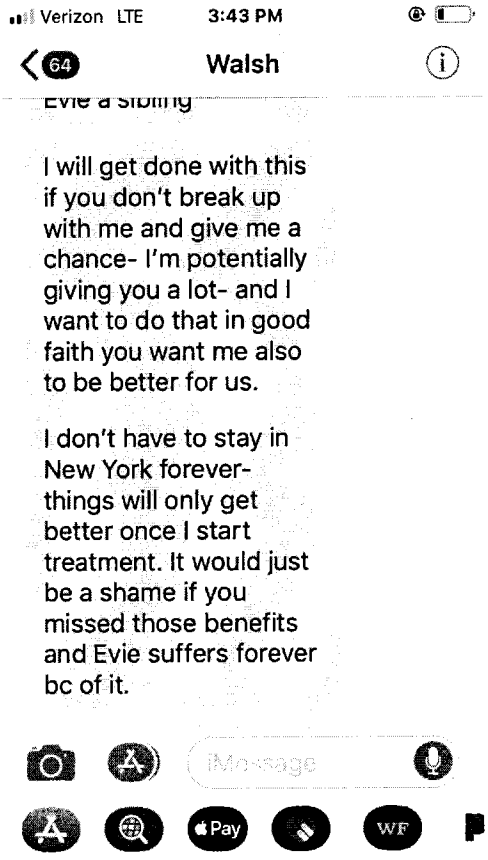
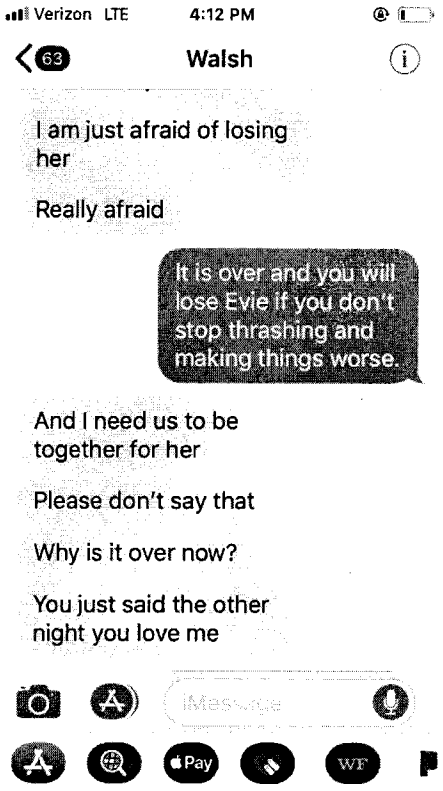


EXHIBIT F

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I am afraid of losing you. Please don't be done with our relationship - Walsh, Mid June, 2018

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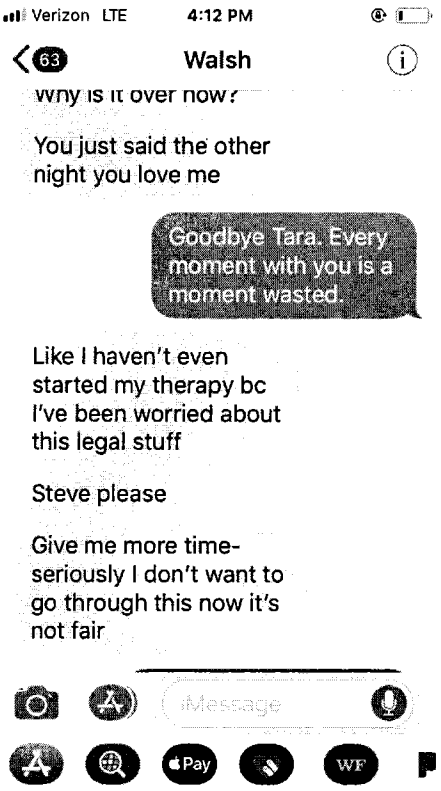
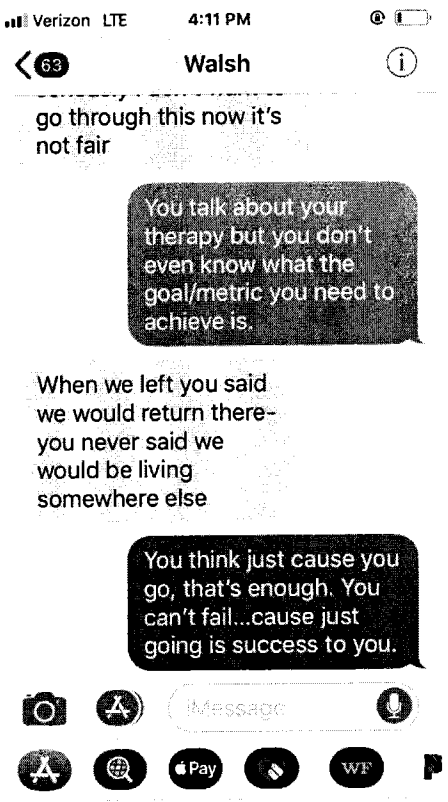
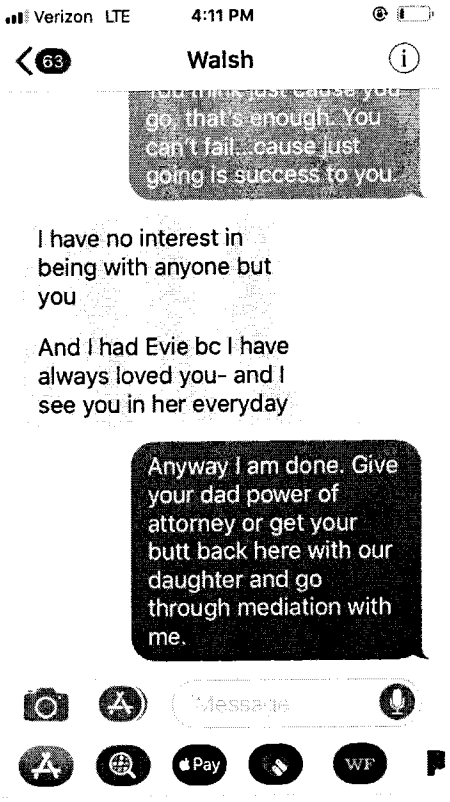


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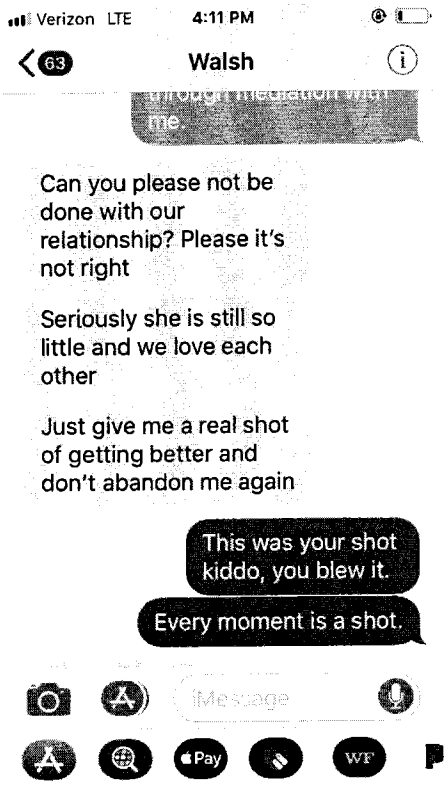
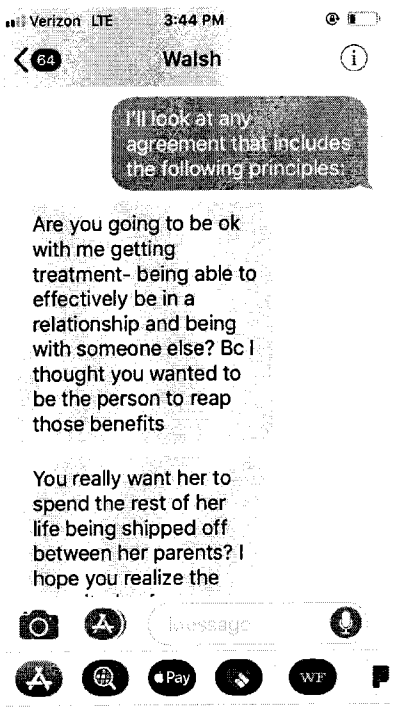


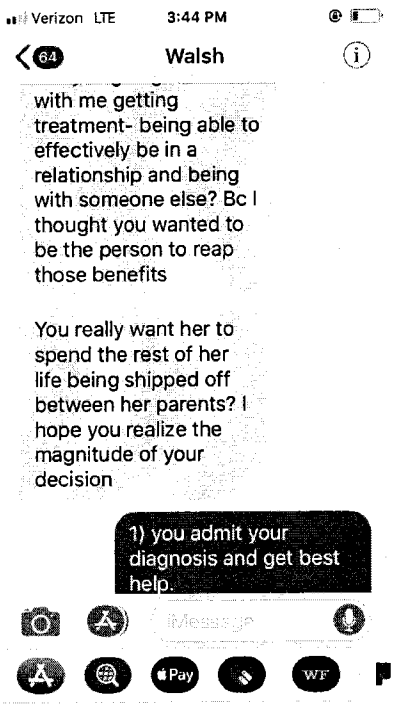
EXHIBIT F

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Tara asked to make amends for drugging. Says 'will think about it.' - June 24, 2018

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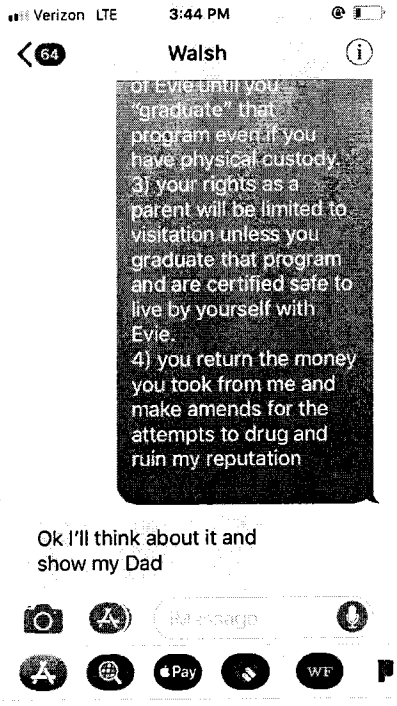
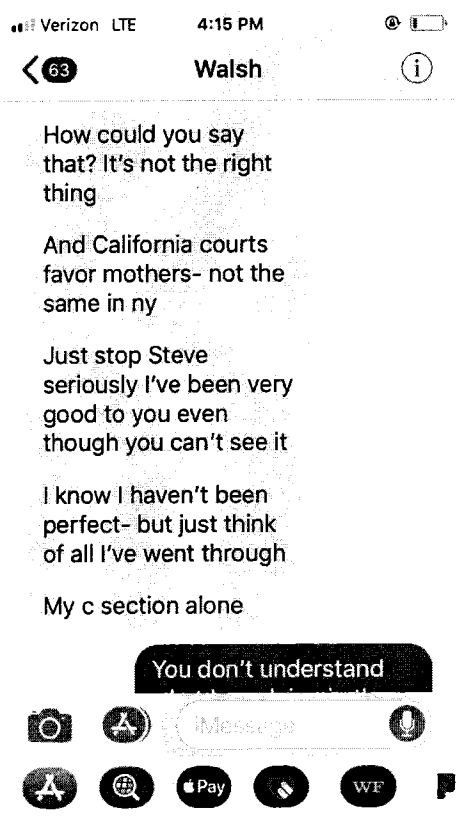


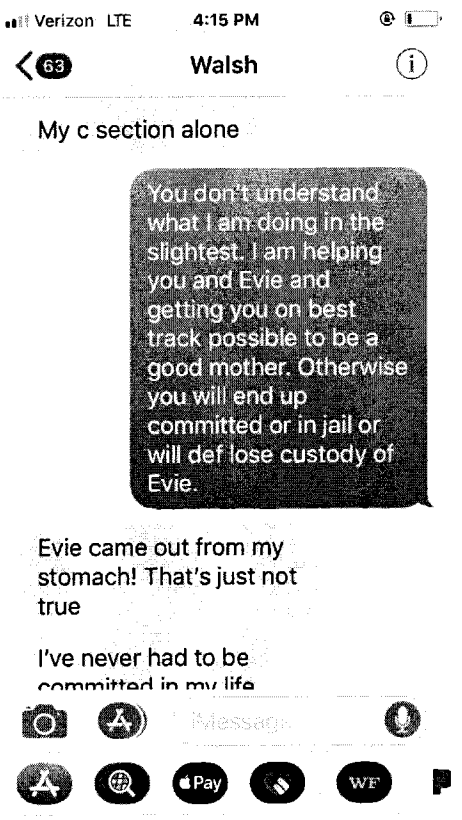
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I am trying to help you. - Russell, Mid June, 2018

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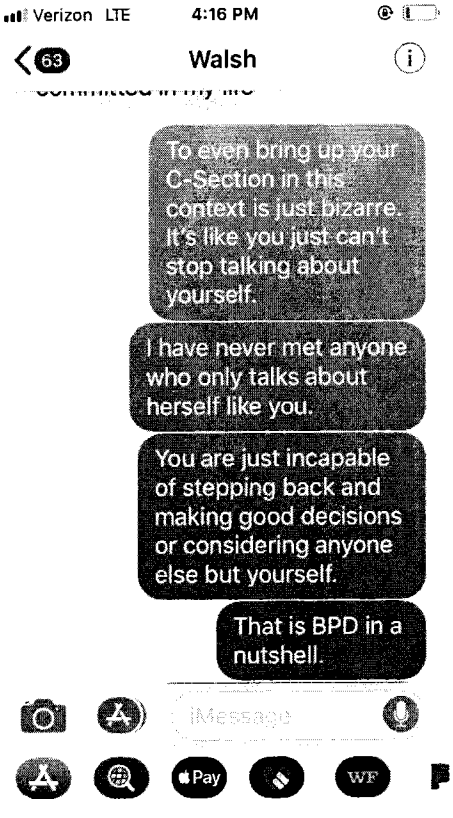


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Walsh wanting to fly out to June 30th Wedding with Russell. - Late June, 2018

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Verizon LTE 4:24 PM

63 Walsh



Never settle

It's not nice that you asked me to come and got my hopes up

So be honest did you ask someone else?

I guess I should assume you did if you won't answer me

iMessage

Verizon LTE 4:23 PM

63 Walsh

answer me

I asked but everyone said...you got a lady...and baby so I would only come in an emergency and no way we banging.

That was at the bus station.

can you just give me a strait answer?

See part of you likes to get me all wound up- you could just say yes I did I'm moving on or no I didn't you should chill- and not lie

iMessage

Verizon LTE 4:23 PM

63 Walsh

See part of you likes to get me all wound up- you could just say yes I did I'm moving on or no I didn't you should chill- and not lie

I can handle the truth it's not like I'm pregnant anymore

The truth is that if you don't shape up and give me some hope I am going to move on, but I haven't yet, so don't make things worse by thrashing around.

iMessage

Verizon LTE 4:23 PM

63 Walsh

Ok fine but I still should come I'll get you an agreement tomorrow

AND I'm testifying or whatever

I think I just need to have sex it's been awhile

I think taking amphetamines makes my emotional regulation worse I'm stopping taking vyvanse tomottow

Tomorrow

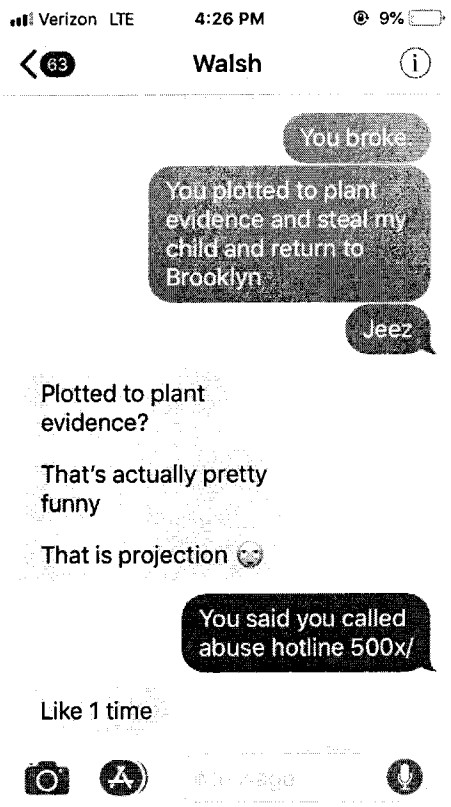
iMessage

EXHIBIT F

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Tara denied calling abuse hotlines, was made to by friend. - Late June, 2018

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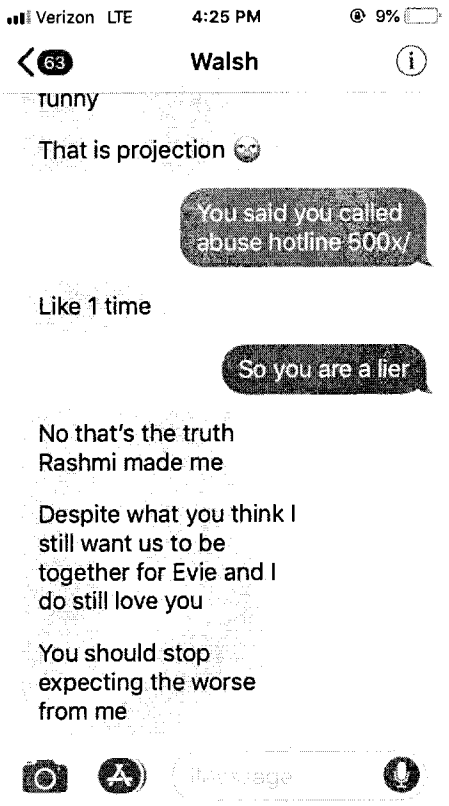
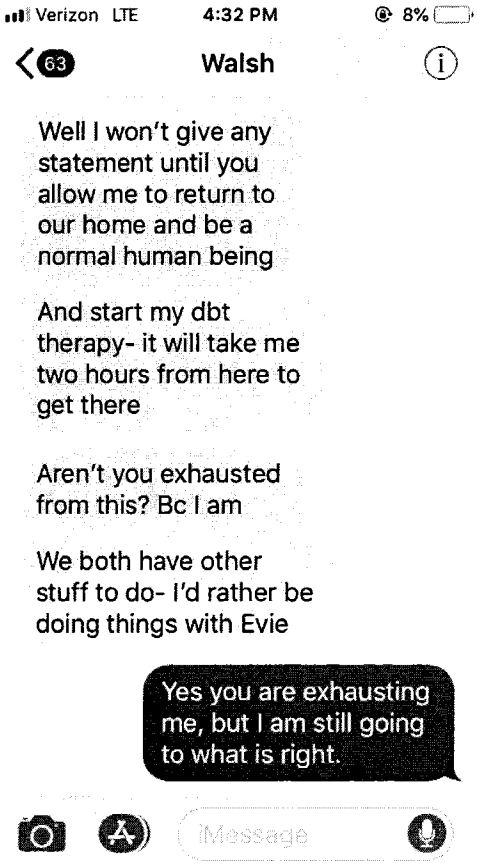


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Walsh asks be allowed to return to "our home" and start DBT therapy. - Mid-Late June, 2018

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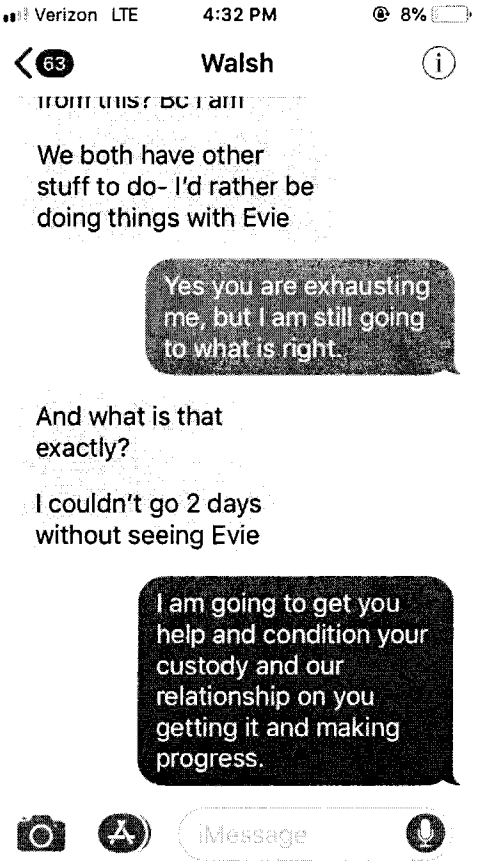


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Come visit us for Fathers Day. - Mid June, 2018

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Verizon LTE 4:47 PM 3%

63 Walsh

Sat, Jun 16, 12:20 PM

Awe you still not talking?

I feel like she owes me- and you- an apology for what she did- no?

But Brendan and her won't talk to me anyway- I'm at a family party now and just chilling with Evie and Kiara



iMessage

Pay WF

Verizon LTE 4:47 PM 3%

63 Walsh





Sat, Jun 16, 4:39 PM

Awe daddy's girl

iMessage

Pay WF

Verizon LTE 4:47 PM 3%

63 Walsh



Sat, Jun 16, 4:39 PM

Awe daddy's girl

Where were you I was worried you died

None of my messages got delivered

You should come here to be with her on Father's Day! It's your first it's sad your not together

iMessage

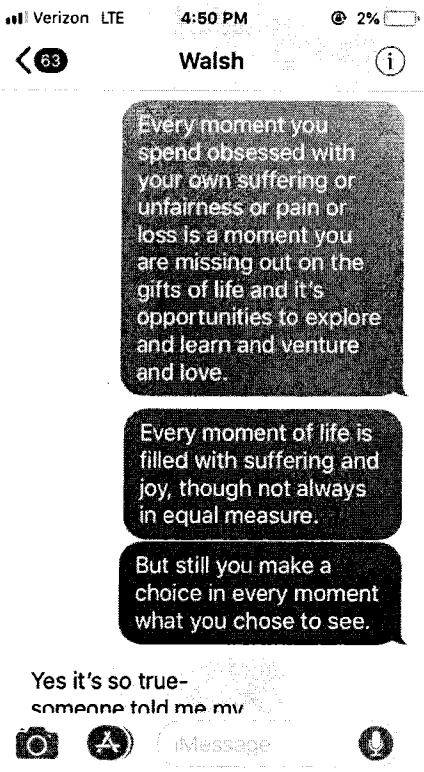
Pay WF

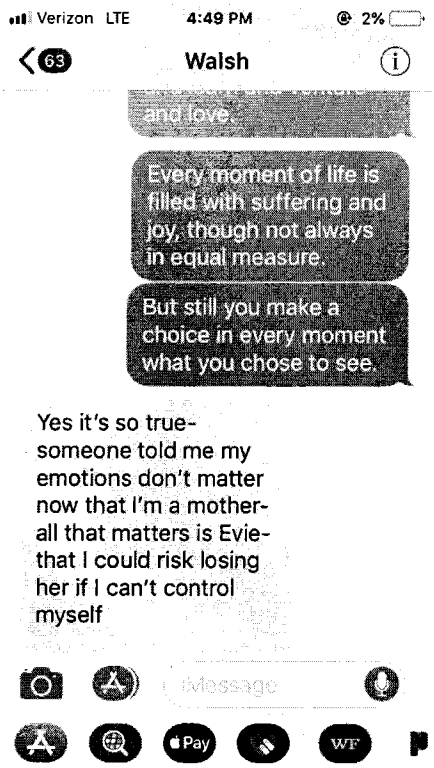
EXHIBIT F

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Walsh acknowledges she needs to get control of herself for Evie. Asks Russell to come see her in NY soon. - Mid June, 2018

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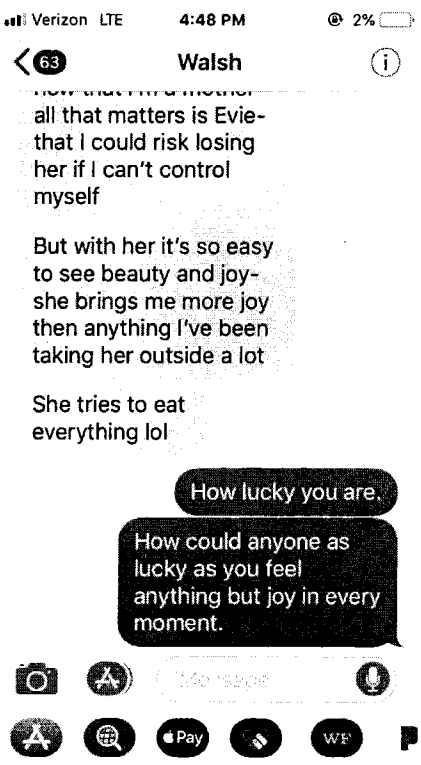
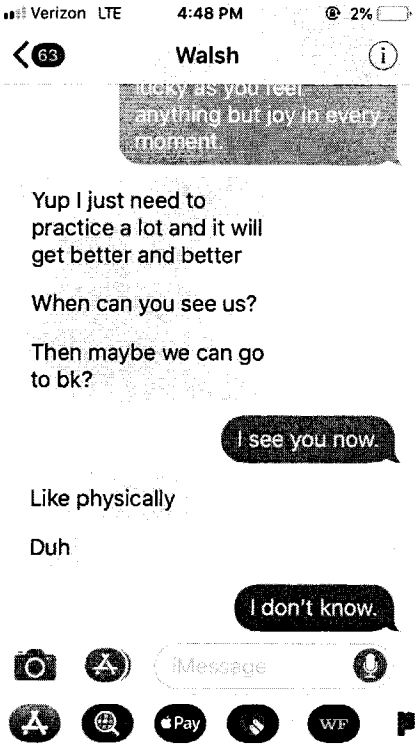


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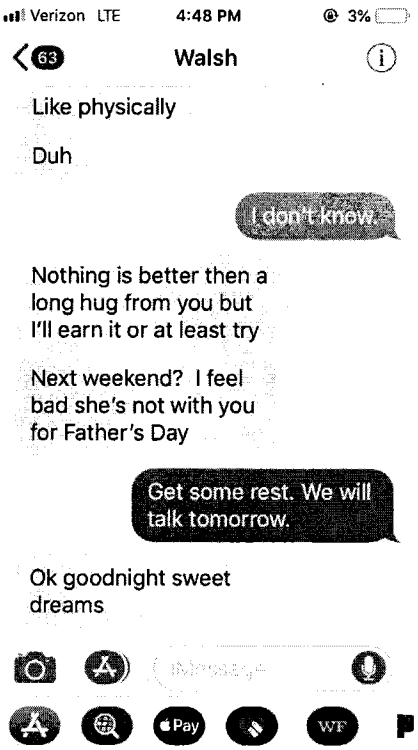
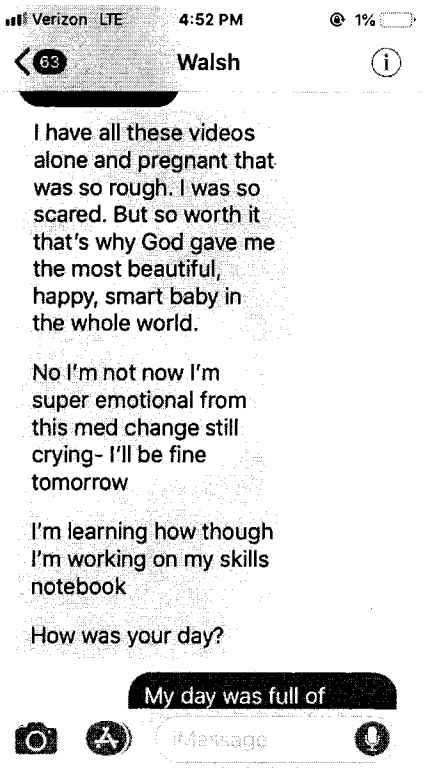
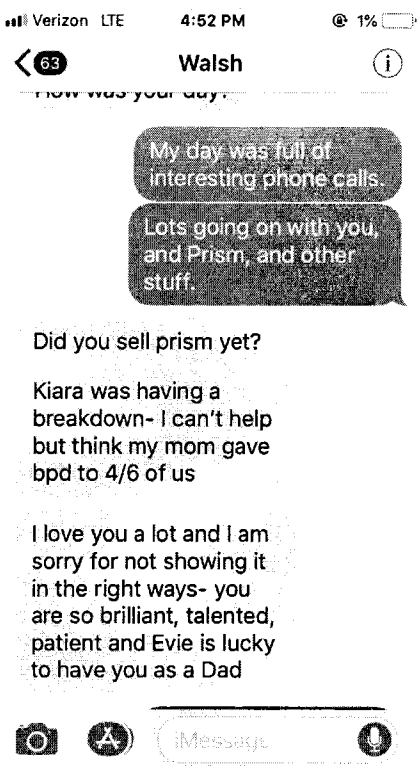


EXHIBIT F
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Walsh says Russell is a 'patient' Dad that Evie is 'lucky to have after change in medicine. - Early to Mid June, 2018

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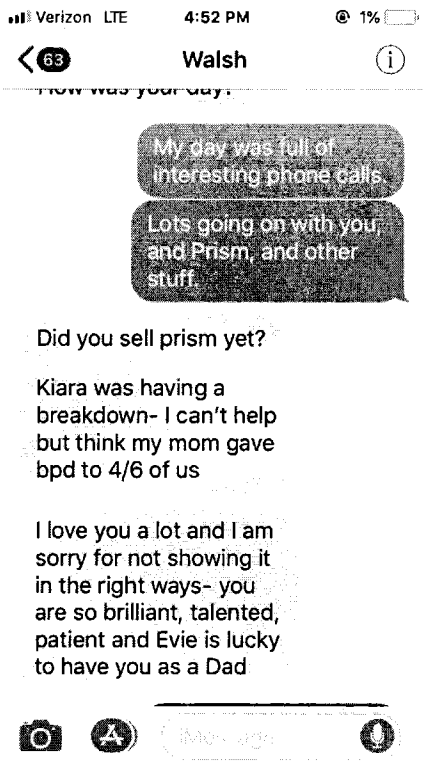
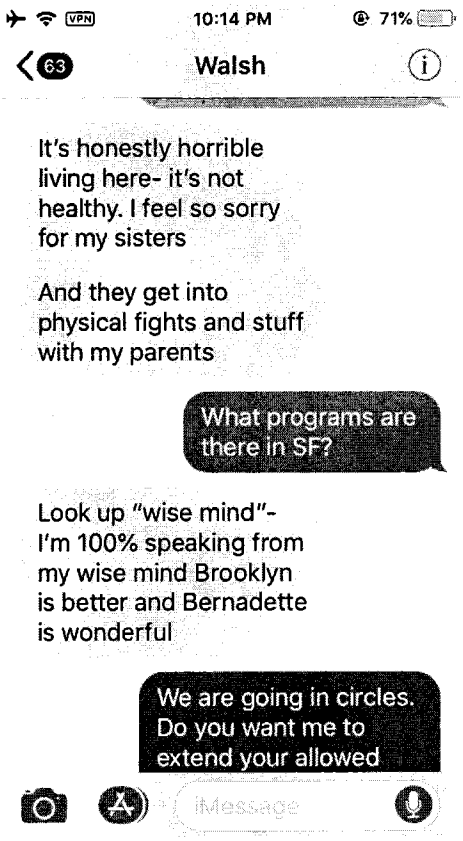


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Tara talks about how bad it is living with her parents. - Early to Mid June, 2018

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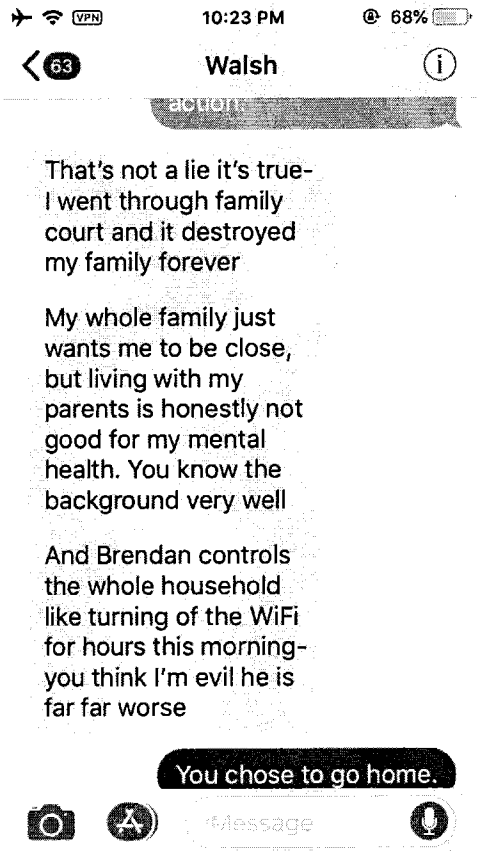


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